



THE BIRTHRIGHT LOTTERY

Citizenship and Global Inequality

AYELET SHACHAR

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Introduction:

The Puzzle of Birthright Citizenship

Give me your tired, your poor,
Your huddled masses yearning to breathe free,
The wretched refuse of your teeming shore.
Send these, the homeless, tempest-tost to me,
I lift my lamp beside the golden door!

EMMA LAZARUS, *The New Colossus* (1883)

IN 2003, five men from the Dominican Republic hid themselves on a ship headed for Houston, Texas, in search of the “golden door.” When the ship was about half-way to Houston, one of the stowaways became ill. The five men decided to call upon the human compassion of the crew, and made their presence known. The vessel’s crew knew they were bound by the rules of the International Maritime Organization “to protect, feed, and repatriate stowaways.” But they also knew that they would receive special bonuses from the vessel’s owner if they reached the shores of the United States stowaway-free. America’s current immigration policy imposes significant monetary fines on vessels arriving with unwanted and undocumented migrants, like the five men in our story, who were from “the wrong side of the tracks” of prosperity and security. So the crew members acted swiftly. Showing no compassion at all, they threw two of the stowaways overboard and left the other three on a raft in the sea. After four hours of dangerous navigation, the three men were picked up by another vessel. The two others were less fortunate. Their shark-eaten bodies were found some time later.¹

The stowaways apparently believed that boarding a vessel bound for the United States, without any proper documentation or permission to enter, represented their only hope to fulfill the American dream. As the Texas court that heard the survivors’ legal claim against the vessel’s owner (the person responsible for issuing the bonus reward for stowaway-free arrival) sympathetically noted, the five men’s belief was in fact shared by “countless

immigrants who have—legally and illegally—entered our great country almost since it gained independence.”² The problem nowadays, for those who hold this belief, is that the golden door is not often left ajar. In fact, it is increasingly shut tight. This is true in the United States, as well as in most other prosperous nations.³

When we place the sad story of the stowaways in this broader context, we soon realize that despite jubilant predictions by post-nationalists of the imminent demise of citizenship, the legal distinction between member and stranger is, if anything, back with a vengeance.⁴ This distinction has gained a renewed, and at times draconian, significance in the post 9/11 years. It is this realization that informs my assertion in this book that we must step back and account for the *persistent* importance of citizenship, *especially* in our current era of globalization. This last point requires further elaboration. There is no doubt that growing transnational flows of people across borders have created a wealth of new levels of membership and affiliation, operating within and across territorial borders, as well as above and below the traditional organizational framework of the nation-state.⁵ Such multilayered and potentially overlapping sources of identity and authority provide meaningful rights and obligations that operate on a variety of levels, but they hardly correspond to, nor do they erase, the significance of citizenship as full membership in a political community of equals. As one author eloquently observes, we might use “the term *citizen* in other contexts, but only as a metaphor . . . Cities, provinces, and territories have residents; . . . corporations and communes have stakeholders; the global village has its cosmopolitans and its humanists who dream of a day beyond territorial divisions. But only nation-[states] have citizens.”⁶

This situation may, of course, change in the future. But in today’s world, as I will explain in the following pages, there are strong forces that explain not only the persistence of regulated membership (at the national or supranational level) but also the preservation of its archaic mechanism of conferring citizenship by virtue of birthright. Indeed, we cannot understand the resilience of bounded membership—which defies the vogue predictions of its demise—unless we revisit the legal and political institution of *birth-right* citizenship. This institution provides a state-sponsored apparatus for handing down from generation to generation the invaluable security and opportunity that attach to membership in a stable, affluent, and rule-of-law society. It also allows members of well-off polities an enclave in which to preserve their accumulated wealth and power through time. If we focus on these *transfer* mechanisms, we soon realize with some surprise that today’s birthright citizenship laws resemble ancient property regimes that shaped rigid and tightly regulated estate-transmission rules. Birthright cit-

izenship operates not merely *as if* it were any other kind of inherited property; rather, it moves down the generations like an entail form of untaxed inherited property.⁷ Today, such “entailed” transfer of property is deeply discredited: it is banned in most jurisdictions and, indeed, is largely associated with a bygone feudal system. At the same time, we still find strict reliance on birthright transmission of entitlement in the assignment of the valuable good of *political membership*.

It was none other than Alexis de Tocqueville who, in *Democracy in America*, famously warned about the social and political dangers of inherited property becoming the basis of enduring privilege. A similar cautionary tale is worth telling about birthright citizenship in an unequal world like our own. This book does just that: in confronting the complexity of the current system of citizenship transfer, I aim to offer a new way of thinking about political membership by drawing a conceptual analogy between birthright citizenship and inherited property. This perspective creates a space in which to explore membership entitlement in the broader context of today’s urgent debates about global justice and the distribution of opportunity.

For those granted a head start simply because they were born into a flourishing political community, it may be difficult to appreciate the extent to which others are disadvantaged due to the lottery of birthright. But the global statistics are revealing. Children born in the poorest nations are five times more likely to die before the age of five. Those who survive their early years will, in all likelihood, lack access to basic subsistence services such as clean water and shelter, and are ten times more likely to be malnourished than children in wealthier countries. Many will not enjoy access to even basic education, and those out of school are more likely to be girls than boys.⁸ The odds that they will either witness, or themselves suffer, human rights abuses are also significantly increased. What is more, these disparities that attach to birthright citizenship are not a matter of individual desert or fault; rather, they represent systemic and structural patterns. In such a world, citizenship laws assigning political membership by birthright play a crucial role in the distribution of basic social conditions and life opportunities on a global scale.⁹

My intention is not to belabor the familiar argument that such extreme inequality of actual life chances is morally and ethically troubling. Rather, the point here is more subtle: by focusing on the often neglected angle of membership transfer, I wish to call attention to the crucial role played by existing legal regimes for allocating entitlement to political membership (according to birthright) in restricting access to well off polities and sustaining the privilege of inherited entitlement. I further wish to destabilize the notion that such reliance is “natural” and, in this sense, apolitical. This

latter notion serves to legitimize (and make invisible) the significant intergenerational transfers of wealth and power, as well as security and opportunity, which are currently maintained under the seal of the birthright regime of membership allocation. By highlighting the analogy to inherited property regimes, it becomes possible to call attention to the manifold ways in which reliance on birth in the assignment of citizenship regularizes, naturalizes, and legitimizes distinctions not only between jurisdictions, but also between vastly unequal bequests. Framed in this way, we can begin to acknowledge the massive estate-preserving implications of inherited citizenship regimes as they exist today. Drawing upon the rich body of democratic theory and property jurisprudence, this book sets out to expose—and challenge—the moral problem of unburdened intergenerational transmission of citizenship.

It seems unlikely that circumstances of birth would serve today as the core determinants of entitlement to full and equal membership in the citizenry body, given the extent to which it has been rejected in so many other domains of public life.¹⁰ And yet, reliance upon the accident of birth is inscribed in the laws of all modern states and applied everywhere. In fact, the vast majority of the global population has no way to acquire membership *except* by circumstances of birth.¹¹ To the extent that citizenship is a valuable resource, it is currently secured on the basis of a morally arbitrary set of criteria. Birthright membership principles that sanction such distribution deserve the same critical analysis appropriate to any other social institution that stands in the way of the equal realization of opportunities. Such analysis is, however, conspicuous for its absence. The almost casual acceptance of ascription as a basis for assigning political membership is so prevalent that we tend to simply take it for granted.¹² Even those who propose to tighten the circle of membership do not contest the basic principle of hereditary entitlement; instead, they quibble about the scope of its application. What remains unchallenged, and remarkably so, is the entrenched assumption that reliance on birth is somehow an unquestionable component of assigning political membership. This (misguided) assumption is, in part, to blame for the scant attention that has been paid to the puzzle of birthright citizenship even by progressive scholars interested in “rethinking” the political community.¹³

This is a serious omission: the bulk of the world’s population acquires citizenship on the basis of transmission at birth based on parentage or territorial location at time of birth. The harsh facts on the ground are such that most people alive today, especially the huddled masses yearning to breathe free, remain largely “trapped” by the lottery of their birth.¹⁴ This acknowledgment motivates (in the book’s latter chapters) the uneasy task

of envisioning viable and realistic possibilities for reforming the existent birthright-allocation system. These possibilities involve enlarging our scope of analysis beyond the standard accounts of political membership as a repository of legal status, rights, and collective identity.¹⁵ Although each of these aspects remains a vital part of citizenship's domain, together they do not capture the full range of its purpose. Instead of dwelling on these familiar categories, my interest lies in *expanding* our understanding of citizenship by adding a thus-far missing aspect: thinking about birthright access to citizenship as a distributor, or denier, of security and opportunity on a global scale. To unearth the more complex and multidimensional functions of birthright citizenship, we need to take a hard look at the entrenched legal connection between birth and political membership.

A hypothetical illustration sets the stage for our inquiry. Imagine a world in which there are no significant political and wealth variations among bounded membership units. There are no resource scarcities of any kind, and there are also no conflicts based on social factors such as class, ethnicity, or nationality. In such a world, nothing is to be gained by tampering with the existing membership structures. In this imaginary and fully stable world system, there is no motivation for change or migration. Each political entity offers a safe and welcoming space in which people live, love, work, and eventually pass away. Assuming there are no natural or human-made disasters, children and grandchildren may well pursue the same membership path as their progenitors. More important still, the specific collective in which a child belongs does not matter; roughly equal opportunities attach to citizenship entitlement in whatever political community she happens to have been born.

When we relax these assumptions in order to fit them more closely to the reality of our own world, with its omnipresent struggles and conflicts—a world where political instability, human mobility, and material inequality continue to persist—things begin to look quite different. In our world, membership in a particular state (with its specific level of wealth, degree of stability, and human rights record) has a significant impact on our identity, security, well-being, and on the range of opportunities realistically available to us. When analyzed in this broader context, full membership in an affluent society emerges as a complex form of property inheritance: a valuable entitlement that is transmitted, by law, to a restricted group of recipients under conditions that perpetuate the transfer of this precious entitlement to “their body,” specifically, their heirs. This inheritance carries with it an immensely valuable bundle of rights, benefits, and opportunities.

Although they have a pernicious effect on distributing life prospects and human security, birthright entitlements still dominate our laws when it

comes to the allocation of political membership to a given state. In fact, material wealth and political membership (which are for many the two most important distributable goods) are the only meaningful resources whose intergenerational transfer is still largely governed by principles of heredity.¹⁶ Whereas the normative foundations of these principles have been thoroughly discussed in terms of the intergenerational transmission of property, they have seldom been considered in terms of citizenship. This omission is as surprising as it is disturbing: academics and policymakers pay a great deal of attention to questions of citizenship, immigration, the claims of minority groups, concerns about civic integration, and how to make political membership meaningful in a world of overlapping and competing affiliations. These vibrant debates engage primarily with the trilogy of status, rights, and identity. What remains conspicuously absent from these discussions, however, is a serious analysis of the global-distributive implications of the entrenched norm and legal practice of designating membership on account of pedigree or birthplace, and its accompanying protections and benefits.¹⁷ When it comes to any other legal entitlement generated and distributed by the state, reliance on birth status has been deeply discredited. To date, however, birthright citizenship laws have largely escaped similar scrutiny. It is my conviction that it is time to redress this imbalance: we must start to critically examine the connection between birth, the *demos* definition, and the unequal distribution of voice and opportunity on a global scale.

Although there have been many significant efforts to problematize citizenship and to counteract problems of global inequality and deficits of democratic legitimacy, the typical strategy has been to focus almost exclusively on the situation of nonmembers, pressing hard to expand their rights and to open up the regimes that make it possible for newcomers to join the circle of members.¹⁸ Undoubtedly, these are important objectives, which have become ever more urgent in recent times. The years following 9/11 have seen governments throughout the world expand and deepen their regulatory control over territorial access and membership admission as part of a larger strategy to regain control over borders.¹⁹ Yet, as an analytical matter, to frame the question of political membership in this way is to omit something important. It is not enough to focus only on the situation of those who do not belong; the basis for entitlement of those who “naturally” belong must also be examined. How is full membership acquired in the absence of migration? On what basis is the coveted entitlement to citizenship conferred upon some, while denied to others? Who benefits and who loses out when birthright principles are entrenched in citizenship laws? These are the fundamental questions that will concern me in the discussion

that follows. To address them, we must shift our gaze from the immigrant to the citizen, and expand the discussion of membership beyond the familiar lens of identity and belonging to account for the transfer mechanism of citizenship by birthright with its pernicious effects on the distribution of voice and opportunity on a global scale.

Birthright Attribution: The Legal Frameworks of Citizenship and Property

When we talk about birth as a source of citizenship, we must distinguish between two principles that define membership in a state in the modern era: *jus soli* (“the law of the soil”) and *jus sanguinis* (“the law of blood”). While *jus soli* and *jus sanguinis* are typically presented as antipodes, it is important to note that both rely upon, and sustain, a conception of bounded membership. They share the basic assumption of scarcity: only a limited pool of individuals can automatically acquire citizenship in a given polity. Once the idea of scarcity is introduced, we are faced with the dilemma of allocation, or boundary making: put another way, how do we determine whether a person is to be included within the circle of members or left outside its parameters? Both principles resolve this dilemma in a similar fashion: by reliance on *birthright transfer of entitlement*. The distinction between them lies in the connecting factor used to demarcate a respective polity’s membership boundaries: *jus soli* relies on birthplace; *jus sanguinis* on parentage. It is tempting to think that a rule that makes citizenship “contingent upon the place of a child’s birth is somehow more egalitarian than a rule that would make birthright citizenship contingent upon the legal status of the child’s parents.”²⁰ But this distinction can easily lead us astray. Both criteria for attributing membership at birth are arbitrary: one is based on the accident of birth within particular geographical borders while the other is based on the sheer luck of descent.

By focusing selectively on the event of birth as the sole criterion for allocating automatic membership, existing citizenship laws contribute to the conceit that this assignment is no more than an apolitical act of membership demarcation. It is in this way that the potential distributive implications are obscured from view.²¹ In practice, however, birthright-attribution rules do far more than demarcate who may be included in the polity. Like other property regimes, they also define access to certain resources, benefits, protections, decision-making processes, and opportunity-enhancing institutions which are reserved primarily to those defined as right-holders. In this respect, birthright citizenship exhibits the definitive features of prop-

erty regimes, which can broadly be characterized as a system of rules that govern access to, and control over, resources that are scarce relative to the human demands made upon them.²²

As William Blackstone already observed more than two hundred years ago, “there is nothing which so generally strikes the imagination, and engages the affections of mankind, as the right of property.”²³ Invoking a conceptual analogy to property and inheritance thus requires vigilance and clarification of the intended use of these charged concepts, a task that I undertake in the following chapter; at this point, suffice it to say that citizenship clearly differs from the narrow and atomistic (indeed, “Blackstonian”) conception of property that has become synonymous with the values of tradability, alienability, or “sole and despotic” ownership.²⁴ Rather, it is a competing vision of property, one which emphasizes stewardship and mutual responsibility, that I wish to bring to the fore in the context of citizenship. As a collectively generated good that creates a complex set of legal entitlements and obligations among various social actors, citizenship offers an excellent example of more contemporary interpretations of property as a web of social and political relations imbued with obligations to promote the public good and not just to satisfy individual preferences.²⁵ This broader perspective permits us to see citizenship regimes not only as generating intricate rules that define the allocation of membership, but also as bearing considerable effects on the distribution of power, wealth, and opportunity. These latter implications are particularly disturbing given that access to the said social good is determined almost exclusively by circumstances beyond our control. To draw the analogy to inherited property and to acknowledge birthright entitlement to citizenship as a human construct not impervious to change is to open up the existing system of distribution to critical assessment. Once we categorize certain relationships under the rubric of property and inheritance, the classic questions of distributive justice—that is, of *who* owns what, and on *what* basis—cannot but follow.

Birthright Citizenship and Global Inequality

Birthright citizenship does more than define the formal boundaries of membership. It also closely corresponds to strikingly different prospects for the well-being, security, and freedom of individuals. For most legal scholars (as well as most political philosophers), however, the question of which state would guarantee membership to a particular individual has been seen as largely irrelevant. In this respect, notes Benedict Kingsbury, “the system of state sovereignty has hitherto had the effect of fragmenting and divert-

ing demands that international law better address inequality.”²⁶ This may explain why theories of law and morality have too long been blind to the dramatically unequal voice and opportunity consequences of birthright citizenship; but it does little to justify it.

Even thinkers who defend a moral or basic human right to membership typically do so at a general, abstract level, while relegating “the specific content of the right to citizenship in a specific polity . . . [to the] specific citizenship legislation of this or that country.”²⁷ This division of labor may well be motivated by the idea of sovereign autonomy or democratic self-determination. Alas, it unwittingly strengthens the notion that all that matters is that one gain a right to access citizenship “in this or that country” rather than exploring the dramatically unequal life prospects that attach to membership in this or that country. It is this slippage between an abstract right to membership and its concrete materialization that demonstrates how the focus on *formal equality of status* makes invisible the *inequality of actual life chances* attached to citizenship in specific political communities.

The typical response of liberal and democratic theory to the inequality of opportunity caused by ascriptive factors is to work hard to ensure that “no child is left behind.” While this slogan has never fully materialized in any country, it reflects an aspiration to overcome social hierarchies and economic barriers that are caused by morally arbitrary circumstances or structural patterns of disadvantage. It is therefore surprising that the global-distributive dimension of birthright membership has largely escaped critical assessment. This paucity of analysis is explained at least in part by the fact that the study of citizenship laws has traditionally been the province of domestic and often parochial scholarship, which tends to concern itself with the particular features of its own country’s norms and procedures for defining membership and admission.²⁸ International law, for its part, has focused primarily on attempts to resolve the problem of statelessness. This account calls our attention to the fact that it is better for the individual to enjoy a special attachment to a given polity than to remain with no state protection at all.²⁹ This is clearly a potent argument. However, this formulation focuses only on formal equality of status. It says nothing about rectifying inequalities that correlate with the birthright assignment of membership in “this or that” particular country.

Moreover, the familiar focus on formal equality of status (requiring that all individuals belong to one state or another) itself relies on a schematic picture of an orderly world comprised of clearly delineated political communities. This conception of the world is described by Rainer Bauböck as having, “a quality of simplicity and clarity that almost resembles a Mondrian

painting. States are marked by different colors and separated from each other by black lines . . . [This] modern political map marks all places inhabited by people as belonging to mutually exclusive state territories.”³⁰ In such a world, with its clear and exhaustive division of the global political landscape into mutually exclusive jurisdictions, it appears “axiomatic that every person ought to have citizenship, that everyone ought to belong to one state.”³¹ By focusing on the Mondrianesque picture of citizenship, it becomes possible to emphasize the artificial symmetry between states (represented as different color-coded areas on the world map) while ignoring inequalities in the actual life prospects of citizens who belong to radically different (yet formally equal) membership units.³²

On this score, the stowaways knew better. It must have required an acute awareness of the actual inequalities in life prospects to embark on their fatal trip, risking everything, including their very survival, for the goal of attaining a better future in a more affluent and stable country to which they did not legally belong.³³ It is in this context that the relationship between birthright citizenship and inequality of opportunity comes to the fore. Although existing citizenship laws do not create these disparities, they perpetuate and reify dramatically differentiated life prospects by reliance on the morally arbitrary circumstance of birth. At the same time, they camouflage these crucial distributive consequences by appealing to the presumed “naturalness” of birth-based membership. There is, however, nothing apolitical or neutral about these birthright regimes.³⁴ They are constructed and enforced by law, advantaging those who have access to the inherited privilege of membership, while disadvantaging those who do not—just like hereditary regimes of property transmission in the past preserved wealth and power in the hands of the few.

The Importance of Citizenship’s Global Distributive Dimension

We can now see membership boundaries in a more complex light: not only are these boundaries sustained for symbolic identity and belonging purposes (as the conventional argument holds), they also serve a crucial role in preserving restricted access to the community’s accumulated wealth and power. The latter is jealously guarded at the juncture of transfer of “ownership” from the present generation of citizens to its progeny. In other words, birthright citizenship mechanisms provide cover through their presumed naturalness for what is essentially a major (and currently untaxed) property/estate transmission from one generation to another. Ours is a world of

scarcity; when an affluent community systemically restricts access to membership and its derivative benefits on the basis of a strict heredity system—akin to an entail structure of transmission—those who are excluded have reason to complain.³⁵

If we wish to revisit these automatic transmission principles and to consider how to better allocate across borders the social benefits that presently attach to citizenship in a bounded community (as I believe we should), the first order of business is to draw attention to the entrenched connection between birth and political membership. Despite its pervasive effects, this connection has largely escaped attention in both academic and public policy circles. Once subjected to scrutiny, this system of allocation can no longer be taken for granted, nor can it be ignored.³⁶ This is so for at least three reasons.

First, the scope and scale of citizenship distribution is truly grand: it affects every single human being on this earth. Although the topic of immigration nowadays attracts considerable attention, it is still by means of ascriptive birthright that individuals attain their initial political membership in “this or that” particular country. And despite the public attention paid to those who go on to reside outside the polity in which they were born, they represent less than three percent of the global population. Everyone else—namely, ninety-seven percent of the global population, or more than six billion people—is assigned the life-long good of membership by the lottery of birth and either chooses, or is forced, to keep it that way.³⁷

Second, the consequences of this membership-transfer system are profound, going far beyond the familiar emphasis in citizenship studies on questions of identity, diversity, and civic virtue. In an unequal world like our own, birthright citizenship does more than demarcate a form of belonging. It also distributes voice and opportunity in a vastly unequal manner. By legally identifying birth, either in a certain territory, or to certain parents, as the decisive factor in the distribution of the precious property of membership, current citizenship principles render membership in well-off polities beyond the reach of the vast majority of the world’s population. It is in this way that citizenship may be thought of as the quintessential inherited entitlement of our time.

And what a significant inherited entitlement it is: in our world, the global disparities are so great that under the present regimes of birthright citizenship, “some are born to sweet delight” as William Blake memorably put it in the *Auguries of Innocence*, while others (through no fault or responsibility of their own) are “born to endless night.”³⁸ The reality of our world is that the endless night is more prevalent than the sweet delight. More than a billion people live on less than a dollar a day; about 2.7 billion live with-

out access to adequate sanitation and more than 800 million are seriously malnourished.³⁹ Add to this the almost incomprehensible fact that eight million will die each year, as one author piercingly remarks, “because they are simply too poor to live.”⁴⁰ Or think of the shocking atrocity that we casually permit to continue every day: more than ten million children under five years of age perish each year in the world’s poorest nations—most from entirely preventable causes of death.⁴¹ To this we must add the stinging realization that—contrary to the conventional optimistic story of breaking down ascriptive barriers and replacing them with mechanisms of choice and fair distribution—under the current system of birthright, gaining access to citizenship’s goods is clearly not open to anyone who voluntarily consents to membership or is in dire need of its associated benefits.⁴²

Once this more critical perspective is taken into account, with its profound emphasis on global disparities coupled with a sharp recognition of how tightly our membership boundaries are regulated, the existing correlation between inherited citizenship and general well-being is impossible to ignore. The quality of services, safety, and scope of freedoms and opportunities enjoyed by those born in affluent polities are far greater, *ceteris paribus*, than the opportunities of those born in poorer or less stable countries.⁴³

When our citizenship laws effectively become intertwined with distributing shares in human survival on a global scale—designating some to a life of relative comfort while condemning others to a constant struggle to overcome the basic threats of insecurity, hunger, and destitution—we can no longer silently accept this situation. These dramatically differentiated life prospects should disturb not only the expectant crowd of moral universalists but also free-marketers who believe in rewarding effort and distributing opportunity according to merit, rather than on the basis of station of birth. The problem of unequal allocation and transfer, which has gained plenty of attention in the realm of property, is, in fact, far more extreme in the realm of birthright entitlement to citizenship.

The third reason why we must pay careful attention to the puzzle of birthright citizenship is that, astonishingly, we continue to have no coherent theoretical explanation for the continued reliance on circumstances of birth in the assignment of political membership. This is despite the fact that the vast majority of the global population is assigned political membership by ascription (the scope of the studied phenomenon), and the dramatic global distributive implications that result from this entrenched system of allocation of unequal opportunity (birthright’s consequences). If anything, the persistence of ascription in this most unlikely of social arenas—namely, the definition of who is included and who is excluded from the *demos* (the

citizenry body), flies in the face of our standard liberal and democratic accounts of citizenship as reflecting the choice and consent of the governed.⁴⁴ It also reveals serious cracks in the conventional argument that we can divide the world neatly into countries that fall into the “civic” or “ethnic” ends of the spectrum of conceptualization of membership. Similarly, the prevalence of birthright membership stands in tension with the conventional characterization of citizenship as reflecting a social contract between the individual and the political community, or what various French authors refer to as “*le lien politique et juridique*.”⁴⁵ This post-Enlightenment vision is often contrasted with the older, Roman law conception of citizenship as an assigned status, with rights and obligations following automatically as a consequence of birth, not choice. Many of the giants of social and political thought recount and reify this (largely fictitious) distinction, according to which the modern state’s allocation of citizenship operates as a matter of choice and consent, marking an important improvement on the prior, status-based definition of one’s standing in the community. These triumphant themes are perhaps most famously captured in John Locke’s *Second Treatise of Government* and in Henry Maine’s catch-phrase thesis in *Ancient Law*, which describes the transition from the ancient world to the modern one as law and society’s development “from status to contract.”⁴⁶

To recognize the surprising similarities in form and function between birthright citizenship and inherited property highlights a striking exception to the modern trend away from ascribed statuses in all other areas. The ascribed birthright-transmission mechanism, which is still exercised today, cannot be dismissed as a mere historical accident, given that the question of legitimizing political authority and property is central to the liberal, democratic, and civic-republican intellectual traditions. Such a startling observation only makes the persistent link between *political membership* and *station of birth*—a connection that has been both ignored and taken for granted—ever more puzzling and in urgent need of a coherent explanation. Addressing this lacuna is the challenge I take on in this book.

Placing the New Framework of Analysis in Context

My discussion is informed by, and in turn seeks to enrich, three different bodies of literature: citizenship studies in contemporary political and legal scholarship, global inequality debates, and sociological accounts of the demise of borders in the context of post-national theorizing. This literature is set against the actual, restrictive policy changes undertaken by most advanced industrial nations in recent years in reformulating their citizenship

and immigration regimes in response to perceived threats of increased cross-border mobility and global insecurity. In juxtaposing these different lines of inquiry, I highlight the paucity of attention paid to *birthright* membership. I further contend that we need to take into account these partly intersecting discourses if we wish to find a justifiable balance that permits the preservation of the enabling properties of citizenship in a self-governing polity while at the same time aggressively responding to the global injustices perpetuated by the current system of entail-like transmission of membership by birthright. This mode of enquiry also illustrates the gaps and inconsistencies in each body of literature.

Consider the following: most of the writings on citizenship in recent years engages in a nuanced account of the rights of minorities in diverse societies, the civic virtues of citizenship, the ideals of deliberative democracy, and the prospects of creating a world without borders, or at least with more porous ones. This welcome renaissance-of-sorts in citizenship studies has dramatically enriched the field, highlighting the manifold ways in which political membership means much more than “the narrow passport-holding sense of having a formal legal connection to a particular [state].”⁴⁷ Remarkably, however, sparse attention has been paid to analyzing the *transfer* mechanism of membership by birthright and its pernicious effects on the distribution of voice and opportunity on a global scale.

The literature on global inequality, in contrast, suffers from an opposite shortcoming. Although encompassing tremendously rich debates about the effects of globalization on both inter-country and intra-country inequalities, the units of analysis themselves, that is, bounded membership communities (in their present incarnation as sovereign political entities in the interstate system), are often taken for granted. Therefore, no attention is paid to the type of questions that concern me here: how the boundaries of inclusion and exclusion are defined in the first place, what sustains them, and why polities in the real world continue to rely upon morally arbitrary circumstances of birth in deciding who falls on what side of the border of prosperity and security. In spite of the academic fanfare of post- and transnationalists, who happily predicted the demise of regulated borders and the eventual devaluation of bounded membership, citizenship is enjoying an unmistakable resurgence of authority at present.⁴⁸ This makes the study of citizenship’s birthright transfer mechanisms—the lost dimension of law’s construction of formidable walls that establish (and then protect) the membership boundaries they helped create—ever more pressing.

Highlighting this tremendous gap between theory and practice is part of my endeavor here, but it takes place as part of a larger project of merging the critical account of existing citizenship laws with a constructive explo-

ration of the real possibilities for making our world a better place for all of its inhabitants. I do this by reformulating the very birthright principles that currently allocate political membership on the basis of an unrestricted form of inherited entitlement. I argue throughout this book that we must consider the two topics together—birthright citizenship and global inequality—in order to better comprehend the former and tackle the latter.

Thematic Overview

My discussion proceeds in two major stages. In the book's first part, I develop the analogy between birthright citizenship and inherited property in the context of a world of severe inequalities of wealth and opportunity. This analogy permits deploying qualifications found in the realms of property and inheritance theory in the membership context; in so doing I propose a model that has the potential to impose restrictions on the unlimited and perpetual transmission of membership—with the aim of ameliorating the most glaring inequalities of opportunity perpetuated by the system of birthright citizenship. This goal informs the idea of a *birthright privilege levy* as an obligation borne by windfall recipients of membership entitlement in well-off polities to improve the life prospects of those allotted less under the birthright lottery.

Since birthright citizenship involves the transfer of a lucrative entitlement to resources and opportunities, it invites a legal response that mitigates these presently unburdened intergenerational transfers. If affluent political communities wish to continue to bestow membership according to birthright, thereby shaping the life prospects of recipients in a fashion that conceptually resembles the inheritance of entailed fortunes, they must accept a corresponding obligation. In this way, the imperative to provide for those less fortunate in their citizenship assignment is not a matter of charity but of legal duty. The basis for this obligation is rather straight forward. Even avid defenders of property rights resist endorsing automatic transmission of entitlement from one generation to another in perpetuity: such inheritance regimes are treated as morally weak and objectionable. Taking the existing constraints on the power to convey property through inheritance as our model for taxing the birthright recipients of hereditary citizenship in affluent polities, the privilege levy offers a creative way in which to denaturalize the entail-like mechanisms that presently permit the uncurtailed concentration of wealth and power in certain bodies politick. Although many details need to be addressed in respect of the actual design and administration of such a birthright levy on citizenship inheritance in

affluent polities, we can envisage distributing these revenues to specific projects designed to improve the life opportunities of children in the world's poorest nations—regardless of their (unchosen) birthplace or ancestry.

In the book's second part, I shift the focus from the global to the domestic, exploring the in-state problems of overinclusion, underinclusion, and democratic legitimacy, articulating their connection to the current regime of birthright citizenship. As with the discussion of citizenship and global inequality, I begin my exploration of the deficiencies of reliance on birth in defining membership in the polity by first mapping the legal terrain, placing it in a broader comparative and historical perspective. This is followed by a critical evaluation of the normative defenses that favor the preservation of a connection between birth and political membership. This critique is followed by the development of an alternative framework to define access to citizenship. Under this framework, emphasis is put on the significance of actual membership in the community, over and above any privileges obtained by inherited entitlement. I call this genuine connection principle "*jus nexi*" because, like *jus soli* and *jus sanguinis*, it conveys the core meaning of the method through which political membership is conveyed: by connection, union, or linkage.

The two-pronged analysis adopted in the book leads to unexpected results. For instance, it brings to center stage the importance of citizenship's enabling capacities and highlights its complex relationship to the gate-keeping function of membership. And although I fiercely criticize the transfer mechanism of citizenship, my conclusion is not that we must abolish the collective good of membership. Rather, I argue that a more productive balance can (and must) be found between protecting the valuable properties of membership and improving the well-being of those excluded from gaining access to such benefits solely because of where or to whom they were born. Although there is no one-size-fits-all solution, the birthright privilege levy supports the creation of a transnational transfer system of knowledge, services, and infrastructure (or what we might call a "worldwide safety net"), which is designed to address the morally unjustifiable disparities in life prospects that currently attach to perpetual membership transmission. It represents a concrete institutional measure to restrict birthright's presently uncurtailed transmission of privilege. This potentially far-reaching idea finds its roots in emphasizing the global-distributive aspect of citizenship and the analogy to inherited property.⁴⁹

Importantly, the proposed reconceptualizing of citizenship as analogous to inherited property does not require rejection of the premise that special, or more extensive, obligations are owed to those defined as fellow members in the political community.⁵⁰ It simply means that bearing such special obligations does not tell against having a parallel general duty to provide

a basic safety net of well-being and opportunity to those who remain barred from membership through accidents of birth.⁵¹

As ANYONE with an interest in domestic and international affairs would surely acknowledge, the importance and timeliness of the topics discussed in this book cannot be overstated. Citizenship and immigration are notorious hot-button political issues in the world's most affluent countries and, increasingly, in many emigrant-sending polities as well. Human mobility as well as pressing concerns about justice, equality, and development are becoming increasingly global issues. Yet our laws and conceptual imagery that define who gains access to the life-long good of citizenship and according to what criteria are still conducted in feudal-like terms of birth-right entitlement, which simply no longer fit the bill; the social world that spawned these categories has long been succeeded by other relationships and values. In the same way, the political reality around us has changed radically in recent years, particularly in terms of the ever deeper economic and global security interdependence. These transformations are, of course, making their mark on the ground. What is lacking, however, is a fitting vocabulary to capture and assess the new political economy of citizenship in a world that is still riven with stark inequities.⁵²

It is time to revise our already tired and familiar methods of defining who belongs to the political community, and on what basis. An equally pressing task is to respond to the concerns and demands of those who remain outside the circle of membership due to nothing more than accidents of birth. This book further highlights the need to place the debate about membership allocation in a broader context of consideration of inequality of life prospects and the possibilities for providing a basic safety net globally, irrespective of the political community into which one happens to have been born. Such an inquiry is particularly urgent given that mounting fears about the overcrowding of affluent countries by unwanted immigrants seem to drive much of the restrictive policies recently adopted in this sphere. Thinking about citizenship as if it were a form of inherited property is one way to defract our current limited reality into a new set of possibilities.

The following chapters attempt to respond to some of the most crucial problems in today's citizenship law and practice: overcoming the blind reliance on birthright regimes, which, beyond their severe global distributive consequences (the subject of discussion in the book's first part), are also proving to be poor predictors for defining who will actually belong in the circle of members (the book's second part) based on their real and substantive ties rather than any status-based, ascriptive factors. I further contend that once the analogy between birthright citizenship and inherited property

has been drawn, foundational questions of access, transfer, and distribution become pertinent to the discussion of citizenship's domain. Although our theories of justice and property allow for unequal accumulation of wealth and other resources, they devote considerable thought to providing justificatory grounds for defending such inequity in the distribution of holdings. More important still for the purposes of our discussion is the recognition that these theories impose significant restrictions on social institutions that generate inequality. This is precisely what is missing in the prevalent framework of birthright citizenship.

The Road Ahead

The reliance on ascription in the conferral of citizenship—perhaps the most celebrated feature of the modern landscape—is at the heart of my inquiry in this book: how could it be that political membership, something which is so crucial for our identity, for our rights, for our political voice and for our life opportunities, is distributed on the basis of accidents of birth? Weaving together pertinent fields of inquiry (including law, political philosophy, institutional design, development economics, citizenship and globalization studies, and critical social theory) this book offers a comprehensive, yet surprising, answer to this question.

Let the flow of ideas speak for itself.

PART ONE

BIRTHRIGHT CITIZENSHIP
AND GLOBAL INEQUALITY

Reconceptualizing Membership: Citizenship as Inherited Property

I am astonished that ancient and modern writers on public matters have not ascribed greater influence over human affairs to the laws governing inheritance. Such laws belong, of course, to the civil order, but they should be placed first among political institutions because of their incredible influence on a people's social state; . . . in a sense, they lay hold of each generation before it is born. Through them, man is armed with an almost divine power over the future of his fellow men. Once the legislator has regulated inheritance among citizens, he can rest for centuries. Once his work has been set in motion, he can remove his hands from his creation. The machine acts under its power and seems almost to steer itself toward a goal designated in advance. If construed in a certain way, it collects, concentrates, and aggregates property, and before long, power as well.

ALEXIS DE TOCQUEVILLE, *Democracy in America* (1835)

THE VAST MAJORITY of today's global population (97 out of every 100 people) have acquired their political membership solely by virtue of birthplace or "pedigree."¹ Even in the current age of increased globalization and privatization, there is little doubt that securing membership status in a given state or region (with its specific level of wealth, degree of stability, and human rights record) is a crucial factor in the determination of life chances. However, birthright entitlements still dominate both our imagination and our laws in the allocation of political membership to a given state. In fact, material wealth and political membership (which are for many the two most important distributable goods) are the only meaningful resources whose intergenerational transfer is still largely governed by principles of heredity entitlement. Whereas the normative foundations of these principles have been thoroughly discussed in terms of the intergenerational transfer of property, they have seldom been considered in terms of citizenship.

This omission is especially disturbing in light of recent heated debates in political and legal theory concerning the claims of minority groups, the narratives of collective-identity formation, and the ethics of political boundaries.² These debates involve what can be referred to as the "identity-bonding" dimension of citizenship. However, what remains conspicuously

absent from these discussions is a serious analysis of what we might call the global-distributive implications of the entrenched norm and legal practice associated with automatically allocating political membership according to parentage (*jus sanguinis*) or territoriality (*jus soli*) principles. This chapter begins to address this considerable gap: it conceptualizes birthright citizenship laws, which construct and govern the *transfer* of membership entitlement, as analogous to a complex form of inherited property. This analysis in turn opens the door to fresh ideas for mitigating the profound distributive consequences that follow from reliance on circumstance of birth in allocating political membership.

Unlike advocates of world citizenship who seek to abolish bounded membership altogether, I believe that greater promise lies in diminishing the extreme inequities in life prospects that are presently attached to ascribed membership status under the existing birthright regime. This approach strikes a new balance between political membership and global justice without substantively detracting from the participatory and enabling qualities of membership in a self-governing polity. Although there are a number of responses that might get us closer to accomplishing this vision, I will focus here on the *obligation* to impose certain property-like and justice-based restrictions on the presently uncurtailed citizenship inheritance. Whether to interpret this obligation as a strong egalitarian commitment or a weaker international baseline welfarism is, of course, open to debate and will eventually have to be worked out through various democratic deliberations and reiterations across and between membership communities.³ But the crux of my argument is this: once the analogy to inherited property is placed at center stage, it becomes far harder to justify the wealth-preserving aspect of citizenship that has long been cloaked under the cover of birthright's "naturalness." Once we see this complex system for what it is, the justice of requiring well-off hereditary title holders to provide at least a minimal threshold of well being (or subsistence) to those excluded from membership in an affluent and stable polity by accident of birth becomes more manifest.⁴

Theorists and policymakers shall undoubtedly have a heyday debating where precisely to draw this threshold. The more important point for our discussion is, however, to establish and defend the global redistributive obligation as a binding *corollary* to the right of birthright recipients to maintain their own entitlement to citizenship in a well-off polity. (In the course of this book I will be exploring some institutional options to facilitate that obligation.) In Hohfeldian terms, the duty toward those who are excluded from citizenship by circumstances that are absolutely beyond their control is seen as correlated to the recipients' right to uphold their windfall membership. The analogy to inherited property further provides a foundation for avoiding "malware" worldwide, yet without jumping to the quasi-tyrannical

conclusion that we must abolish *tout court* the space in which semibounded, self-governing political communities can flourish.⁵ This permits the preservation of the social relations aspect of citizenship, while counterbalancing the inequities sustained under the seal of natural transmission of entitlement by virtue of birth. It is here that the analogy to inherited property proves most useful. After distinguishing between a narrow and broad conception of property, I turn to a description of the main insights that can be applied from the realm of intergenerational transfer of property to the study of intergenerational transfer of citizenship.

My analysis in this chapter proceeds in four parts. (1) I begin my discussion of birthright-citizenship transfers as resembling property and wealth transfers by highlighting the disparities in the living conditions and opportunities offered to citizens born into unequal political communities across the world. (2) I survey a few key concepts in property theory that serve as a basis for my conceptual analogy between property and citizenship regimes. (3) I show that a broad conception of property corresponds with two core functions of bounded membership in the world today: “gate-keeping” and “opportunity-enhancing.” (4) I venture into an exploration of the early common-law mechanisms of *fee tail* or *entailed* estates. This discussion shows the surprising commonalities in both form and function between these antiquated approaches to property transmission and present-day birthright principles that regulate access to bounded membership. Both these mechanisms serve to preserve and disguise as natural the immensely advantageous starting points in life to those who benefit from the birthright transfer. The analogy between inherited citizenship and the intergenerational transfer of property also helps reveal the pacifying role that legal norms and institutions play in legitimizing these transmission patterns. No less significantly, it permits us to deploy existing qualifications found in the realm of inheritance as a model for imposing restrictions on the presently *uncurtailed* transmission of membership—with the aim of ameliorating its most glaring inequalities of opportunity.

Although I criticize the *transfer* mechanism of citizenship (by way of automatic birthright), my conclusion is not that we must abolish the collective good of membership. Rather, a new balance can and must be found between protecting the valuable features of political membership and improving the well-being of those who currently remain outside the legal walls surrounding well-off polities. I am not suggesting or implying that wealth-preserving is the sole or even core function of birthright citizenship. There are other plausible functions or explanations, such as identity-bonding, democratic self-governance, administrative convenience, respecting cultural differences or constitutive relations. I address these in Chapter 5, but bracket them for now in order to highlight the global distributive dimension that

often goes unnoticed in our familiar discussions about citizenship. Ultimately, once the analogy between property and citizenship is drawn, the rich body of literature on inheritance becomes relevant to our discussion of the intergenerational transmission of citizenship. This enables me to defend the protections that citizenship guarantees to those included within a given membership circle, while at the same time targeting the unequal effects of this transmission system on those who remain excluded by its rigid, birth-based entitlement structure. Viewed through this prism, a redistributive *birth-right privilege levy* (described in Chapter 3) might provide a model solution for addressing the severe inequalities of starting points that currently attach to inherited membership. Given that “*all* reasonable moral theories give us a sound basis for condemning the status quo,” placing this kind of burden on the presently uncurtailed inheritance of citizenship permits establishing a binding legal obligation on the fortuitous birthright recipients.⁶

What Is Citizenship Worth?

Much has been written about global inequality. Everybody knows that the living conditions of a child born in Swaziland are, other things being equal, far worse than those of a child born in Switzerland. Publications such as the UNDP’s *Human Development Report* or the World Bank’s *World Development Report* reveal just how tremendous global disparities in life opportunities, chances, and choices actually are.⁷ Consider, for example, measurements reflecting absolute deprivation: that is, the number of people falling below a threshold that enables them to function in a decent manner, such that the possibility of autonomous human action is severely restricted if not removed outright.⁸ According to recent World Bank statistics, approximately 1.1 billion people live in extreme poverty with an income of less than \$1 per day per person, measured at purchasing power parity.⁹ Another 1.6 billion live in moderate poverty, defined as living on between \$1 and \$2 per day. In other words, over 2.7 billion people—approximately 45 percent of the world’s population—survive on less than \$2 a day. Virtually all of the world’s extreme and moderate poor live in Asia, Africa, and Latin America. The overwhelming share of the extremely poor live in Southeast Asia and sub-Saharan Africa. At least 25 percent of the households in almost all sub-Saharan Africa or East Asian countries subsist on less than \$1 per day per person at real purchasing power levels. As of the early 2000s, the average annual per capita income in the United States exceeded \$30,000, with an average annual growth of 1.7 percent over the last two centuries. In contrast, the per capita annual income in Africa is

just over \$1,300 (far lower in sub-Saharan Africa), with an average annual growth rate of 0.7 percent over the last 200 years. Global inequalities in terms of income are even more striking when gender is factored in. Whereas in most industrialized polities, significant strides have been made toward the elimination of at least formal gender inequality, in other parts of the world women continue to lag far behind their fellow countrymen in terms of income and meaningful life choices.

But global inequalities in opportunity go far beyond income and expenditure. The mean years of educational attainment for the world have almost doubled from 3.4 in 1960 to 6.3 in 2000. However, disparities in educational attainment and achievement between students in developing countries and those in Organization for Economic Co-operation and Development (OECD) countries remain strikingly large. In many developing countries, literacy rates are still unacceptably low. According to the 2006 *World Development Report*, developing countries constitute the lower tail of the learning distribution. Students in these countries fare, on average, far worse than students in even the poorest-performing OECD countries. A recent study found that for children in Argentina and Chile average performance is two standard deviation points below that of children in Greece, one of the poorest performing countries in the OECD. Another recent study found that the reading ability of an average Indonesian student is equivalent to that of a French student at the seventh percentile.

Global inequalities also exist in health expenditures and health care. Whereas in 2002 the health expenditure per capita in Switzerland and Norway was roughly \$3,500 (PPP US\$), the equivalent health expenditure in Sri Lanka in the same year was \$131, and a meager \$15 in the Congo. Alternatively, take the crucial indicator of access to clean water. In 2002, 100 percent of Australia's population had permanent access to safe water sources. But only 70 percent of Australia's neighboring Solomon Islands' population, and approximately 39 percent of neighboring Papua New Guinea's population had sustainable access to safe water sources. Another revealing disparity is found in health care provision. Even health outcomes of the rich citizens in poor countries remain well below the OECD average. For all countries with average per capita GDP below \$2 a day, the infant mortality rate of the richest quintile of the population is more than 10 times higher than the OECD average. Basic sanitation standards seem to be a long way off throughout the developing world. The availability of appropriate medical services and drugs is sporadic. And we have not yet taken into account the HIV/AIDS pandemic, with its clear regional concentration and impact on infant mortality.

A baby born in 2001 in Mali (one of the world's poorest countries) had

a 13 percent chance of dying before reaching the age of one year, with his or her chances improving a mere 4 percent, to 9 percent, if the baby was born to a family in the top quintile of Mali's asset distribution. It is further estimated that approximately one in four children (24 percent) born in Mali will not reach age five. By contrast, a baby born in the United States the same year had less than 1 percent chance of dying in its first year or first five years. The probability at birth of not surviving to age 40 (for the 2000–2005 cohort) in Mali was 37.3 percent. In other words, at least one in every three people born in Mali between 2000 and 2005 will die before reaching the age of 40. As of 2003, only 48 percent of Mali's population had sustainable access to an improved water source (100 percent had such access in the United States). That year, over 70 percent of Mali's population lived on less than \$1 a day, and over 90 percent of Mali's population lived on less than \$2 a day. Although the average American born between 1975 and 1979 has completed more than 14 years of schooling (roughly the same for men and women, in both urban and rural areas), the average attainment of the same cohort in Mali is less than two years, with women's attainment less than half that of men, and virtually zero in rural areas. Not surprisingly, the illiteracy rate in Mali (percentage of those aged 15 and above as of 2003) was 81 percent. Taking into account the actual quality of education in the two countries is likely to yield far greater differences.

In short, the general well-being, quality of services, safety, and scope of freedoms and opportunities enjoyed by those born in affluent polities are all far greater, other things being equal, than the opportunities of those born in poor countries. Ours is a world in which disparities of opportunity between citizens of different countries are so great that about half of the population of the world, according to the World Bank, lives "without freedom of action and choice that the better-off take for granted."¹⁰ Although extant citizenship laws do not create these disparities, they perpetuate and reify dramatically differentiated life prospects by reliance on morally arbitrary circumstances of birth, while at the same time camouflaging these crucial distributive consequences by appealing to the presumed naturalness of birth-based membership.

These dramatically differentiated life prospects should disturb not only moral egalitarians, but also free-marketers who believe in rewarding effort and distributing opportunity according to merit, rather than station of birth.¹¹ As the data provided here documents, the problem of unequal allocation, which has gained plenty of attention in the realm of property, is far more extreme in the realm of hereditary or territorially attributed citizenship. Remarkably, in spite of the conceptual affinity between the intergenerational transfer of property and birthright citizenship, and irrespective of the thousands of pages devoted to debating the justifications for inheri-

tance in property law, there have been few, if any, scholarly attempts to scrutinize the justifications for automatic inheritance of citizenship by birth. The muteness of political and legal theory with respect to the intergenerational transfer of citizenship by the fortuitous location or station of birth becomes all the more astonishing when we consider the incredible gaps in life opportunities perpetuated by birthright citizenship regimes. Such disparity runs far deeper and is infinitely more multifaceted than the material inequalities perpetuated through the intergenerational transfer of fungible wealth. By drawing the analogy from inherited citizenship to intergenerational transfer of property and privilege, we open up a new avenue for the development of just such debate.

Property Theory: Some Key Distinctions

Property as State-Enforced Relations of Entitlement and Duties

Property is notorious for escaping any simple or one-dimensional definition. It is commonly recognized that “although property has to do with tangible and certain intangible ‘things’ property is not the thing itself.”¹² Rather, it is a human-made and multifaceted institution, which creates and maintains certain *relations* among individuals in reference to things.¹³ These relations have a special validity in law; a property owner has rights that are valid against the world (rights *in rem*), as distinct from rights *in personam* which are only valid against a specific set of individuals such as those with whom one has contracted. The *in rem* quality provides strong protection to entitlements that get defined as property. This protection, in turn, relies upon collective recognition and enforcement. The collective dimension is important: property rights gain meaning only when they are connected to a system of law and governance that can enforce them.¹⁴ In the modern era, the enforcing body has typically been the state.¹⁵ As Thomas Gray aptly observes, “property must be seen as a web of state-enforced relations of entitlement and duty between persons, some assumed voluntarily and some not.”¹⁶ Given its currency in the contemporary moral and legal landscape, the specific content and protection given to a property entitlement has always been (and still is) subject to political contestation. Property relations are thus never immune to reconstructive inquiry whether in law or in philosophy.

Property relations establish a range of enforceable claims. As stated in Wesley Hohfeld’s seminal work, these enforceable claims are often described as a “bundle” of rights.¹⁷ Some of the most notable sticks in the bundle include the right to use, to transfer, to delimit access, and so on.¹⁸ As Guido

Calabresi and Douglas Melamed observe in their classic “view from the cathedral,” each society or legal system must define who has an enforceable claim in a given entitlement and must further determine which protections, opportunities, and decision-making processes become available to the right-holder.¹⁹

Modern theories of property extend the concept beyond concrete and tangible objects (my car, your house) to refer to a host of more abstract entitlements (shares in a company, intellectual property in the form of patents and copyrights, professional licenses, genetic information, even folklore practices). Changes in human relations and social values constantly modify our understanding of what counts as protected property.²⁰ Important questions of allocation come up when we begin to categorize certain relationships as legal property: who owns it, and on what basis? Ownership and possession of property affects people’s livelihood, opportunities, and freedoms.²¹ Conflicting interests concerning access, use, and control of goods are therefore likely to arise, particularly with respect to items that are scarce relative to the number of claimants or demands that human desires place upon them.²² In this context, it is useful to draw on Jeremy Waldron’s formulation of property relations as offering a “system of rules governing access to and control of [scarce] resources.”²³

When applying these understandings of property to citizenship, perhaps the most obvious parallel is that birthright and naturalization laws create precisely such a system of rules governing access to, and control over, scarce resources (in this case, membership rights and their accompanying benefits). I call this access-defining feature of citizenship its *gate-keeping function*. This function is well-recognized in the literature on political membership: “Every modern state formally defines its citizenry, publicly identifying a set of persons as its members and residually designating all others as non-citizens . . . Every state attaches certain rights and obligations to the status of citizenship.”²⁴ Even in today’s world of increased globalization and privatization, determining who shall be granted full membership in the polity still remains an important prerogative of the state.²⁵ As we shall see in latter chapters, gate-keeping is never absolute or unrestrained. But at present, it does not generate (legally or ethically) an obligation to make the global minimum a correlating duty to the existence of bounded membership. Establishing such a duty as a restraint on the right to exclude is part of what this book aims to achieve.

Although there is a lively discussion among citizenship theorists about the expansion of rights accorded to noncitizens (postnational citizenship), the embryonic development of regional citizenship (the European Union is the prime case study in the literature), and the normative vision of global

(or cosmopolitan) citizenship, it is all too easy to ignore the facts on the ground: gaining access to membership status remains crucially important for defining our scope of opportunity, security, and sense of belonging. This observation, which highlights the continued significance of regulated citizenship in today's world, is fully compatible with acknowledging that at some point in the future we might have a different system of dividing political and juridical authority over people and territory, a system that will not be so closely tied to secure membership in this or that country.²⁶

Even enthusiastic advocates of post-Westphalian citizenship, such as Richard Falk, concede that at present “[d]espite globalization in its various impacts, the individual overwhelmingly continues to be caught in a statist web of rights, duties, and identities.”²⁷ For instance, international travel still depends on passports issued by sovereign states, “borders are exclusively managed by governmental authority, and an abuse of rights in a foreign country is almost always dealt with by seeking help from one’s country of citizenship.” Even migration, “to the extent that it is ‘legal,’ rests on [bounded] notions of territorial sovereignty.”²⁸ In short, although recent years have witnessed a surge in competing and overlapping sources of political authority (both above and below the national level), when it comes to citizenship, states have retained a relatively strong hold over the regulation of their membership boundaries.²⁹ This observation holds true even in the case that seems to contradict our focus on bounded membership, namely, European citizenship. Here, too, a close look reveals a surprising fact: access to membership at the regional or supranational (European Union) level is still entirely derivative. It is exclusively defined at the member-state level.³⁰ This reflects in part the existence of an institutional and international structure that privileges the power of interdependent states (even those bound to establish an “ever closer union”) to define membership boundaries, which I take as a background condition for my analysis.

Returning to our property analogy, when we explore the realm of citizenship, we soon recognize that what each citizen holds is not a private entitlement to a tangible thing, but a relationship to other members and to a particular (usually a national) government that creates enforceable rights and duties. From the perspective of each member of the polity, reconceptualizing his or her entitlement to citizenship as a complex type of property fits well within the definition of *new property*, a phrase famously coined by Charles Reich referring to public law entitlements as serving the traditional private law purposes of ensuring a baseline of security and dignity to citizens under market-based economies.³¹ Unlike traditional forms of wealth, which were held as private property, valuables associated with the public title of citizenship derive specifically from holding a legal status

that is dispensed by the state alone. Such entitlement to the status of membership in turn bestows a host of privileges and benefits (as well as certain civic obligations) upon its holders.³²

Although the value of citizenship is communally generated, the entitlement conferred upon each member is individually held.³³ This intricate combination of individual and collective aspects makes citizenship a particularly complex type of property-like entitlement, with “priceless benefits” as the U.S. Supreme Court memorably put it, adding that “it would be difficult to exaggerate its value and importance.”³⁴ In this legal structure, the state operates as generator and trustee of membership titles, with their critical enabling implications on the life opportunities of its individual members.³⁵ Each insider differs from the outsiders by virtue of his or her share in the protection conferred only on those counted as citizens and by their right not to be deprived of the valuable good of membership itself.³⁶ For each member, citizenship further entails a share of ownership and governance of that polity’s communal and pooled resources. As such, citizens stand in a special relation to each other and to the collective that they govern. When citizenship is conceived in this way, the distinction between “narrow” and “broad” conceptions of property becomes highly relevant.³⁷

The Narrow and Broad Conceptions of Property

The narrow (or “rivalrous”) conception treats property as a market commodity that can be sold, traded, or alienated, through voluntary transactions.³⁸ According to this notion of property, each owner has a near absolute dominion over his or her assets, and is free to dispose of these as he or she sees fits.³⁹ This vision of property rests on a particular conception of social life, according to which all interpersonal interactions are characterized as “trades,” and thus everything may in principle be subject to market transaction.⁴⁰ This in turn relies on a possessive individualism worldview, whereby social atomism and unrestricted commodification rule, and where self-interest is the core motivation for human action.⁴¹ In this view, maximum freedom ought to be granted to the right-bearer, whose preferences may only be limited by compelling state interests (in the form, for example, of compensated “takings”), or certain *ex ante* (rather than *ex post*) legal constraints.⁴²

In contrast, the broad (or “trusteeship”) conception of property views property as part of a web of social and political relations, wherein people depend upon others “not only to thrive but even just to survive.”⁴³ This view of human flourishing dates back to Aristotle and treats property not as an end in itself but as a means toward advancing the commonweal and

building relations of trust.⁴⁴ Closely related to the distinction between the narrow and broad conception is a disagreement over how best to characterize property's core. For those who emphasize self-interest (the narrow conception), property is understood primarily as entailing the right to exclude others from the use and benefit of what one owns.⁴⁵

This right to exclude privileges the possessive individual who presumably stands solely in market relations to other traders in a laissez-faire society. It allows each person to erect high and enforceable legal boundaries of exclusion around her property, boundaries which operate as *in rem* rights, rights "against the world." In this conception, as Hanoach Dagan and Michael Heller sarcastically observe, each individual is seen as "cloaked in the Blackstonian armor of 'sole and despotic dominion.'"⁴⁶ Given its fend-for-yourself ideological bent, the narrow account of property fails to explain situations in which individuals form relations of co-ownership or interdependence. This is a remarkable shortcoming given the current social and economic reality in which co-ownerships, partnerships, shareholding structures and the like, constitute a growing proportion of property relations.

The literature on property, which is mostly dominated by the proponents of the narrow conception, holds in stock plenty of arguments in favor of protecting exclusive and sole ownership. It is argued that this arrangement fosters the owner's independence, dignity, and freedom by creating a zone of privacy within which he or she is protected against the power of the state or a majority of fellow citizens.⁴⁷ Even the harshest critics of the narrow version of property, such as Jennifer Nedelsky, concede that it has valuable qualities: "we mean by property that which is recognized as ours and cannot be easily taken away from us."⁴⁸ In practice, however, the narrow vision has limited traction in explaining the rise of new property regimes that blend individualized and communal ownership in the co-governance of valuable resources.⁴⁹ For instance, there has been a dramatic surge in the number of common property institutions that emphasize cooperation and trust-building among diverse rights-holders by using the law of property to enhance mutually beneficial relationships rather than erecting zones of absolute privacy.⁵⁰

A concrete illustration of this trend is found in the rise of common-interest communities in the United States. It is now estimated that approximately one-fifth of owners of residential housing have chosen to purchase property in housing communities with quasi-democratic governance structures, which typically involve exclusive rights to a dwelling unit and co-ownership of common areas.⁵¹ The rise of organizations such as public corporations and shareholding provide further support for this idea. Such co-ownership calls for the development of institutions and procedures for

decision making that take into account conflicts of interest among individuals who must together control or share collective resources. Furthermore, the “impoverished view of property,” as the narrow conception is called by its critics, fails to seriously take into account power relations or distributional inequities that this conception of social relations is likely to generate.

The broad conception of property better addresses these complexities. Unlike the narrow vision, it is guided by an understanding of property that involves a two-fold legal mandate: the right to exclude and the right not to be excluded.⁵² This interpretation of property is deeply grounded in the history of ideas. The combination of the right to exclude and the right not to be excluded is familiar to the various strands of classic and contemporary democratic, liberal, and republican thought. Although offering different normative visions of the polity, these traditions converge on the following conception: individuals possess inalienable rights to life, liberty, and property.⁵³ Along these lines, the U.S. Supreme Court famously described citizenship as “a right no less precious than life or liberty.”⁵⁴ Citizenship is seen as a precious entitlement that is regulated and conferred by the state, and, as such, must receive the highest level of legal protection.⁵⁵

No less significant, the right not to be excluded means that members of the political community are seen as equal partners in the common enterprise of governing the commonweal.⁵⁶ They stand in a special interpersonal relationship to each other; they are co-owners or partners in a shared political community. This special relationship represents for each member a right not to be excluded from whatever rights, powers, and privileges attach to such membership. Each member is entitled to enjoy those goods that society has declared for common use and to partake in the governance of the polity.⁵⁷ For each person, membership grants an equal share in the commonwealth and its governance. The broad conception further engages in the creation of a host of mechanisms for management, governance, and resolution of conflicts that may arise where more than one person has a stake in a given resource, reserving a wide host of decisions to democratic vote.

More important still for the purposes of our discussion, the right not to be excluded imposes a duty on joint owners to consult with one another, providing each a secured and inalienable “voice,” in Albert Hirschman’s influential terminology.⁵⁸ In the broad conception, we can see how the right not to be excluded imposes an active duty on government to consult with its citizens, as decision makers and stakeholders, in determining how to generate and allocate revenue for necessary government functions as well as how to implement its various redistributive and regulatory functions.⁵⁹ Understanding membership entitlement in these terms also enables us to think about the core democratic right of equal participation in collective

decision-making processes (the franchise) as perhaps the strongest manifestation of a citizen's right not to be excluded. The franchise provides each right-holder with a concrete and enforceable claim to participate in the governance of the commonwealth, to share its burdens, and ideally, attain a threshold-level of well-being.

In contrast to the narrow interpretation of property that emphasizes despotic tendencies and possessive individualism, the broader conception sees property as a net contributor to our ability to blossom as individuals with dignity and opportunity and as a tool for governing shared resources and advancing the commonweal. This broad trusteeship or stewardship interpretation holds well not only for ourselves, but also for the larger community of members.⁶⁰ It is this broader conception that I take on board in asserting that various aspects of distributive justice come to bear once we think of citizenship as a complex form of inherited property.

Property and Citizenship: Several Analogous Functions

Citizenship shares several important characteristics with property, broadly conceived. To begin with, bounded membership provides a textbook example of the combination of a right to exclude and the right not to be excluded. Where citizenship is concerned, I will call the right to exclude “gate-keeping” and the right not to be excluded “opportunity-enhancing.” I analyze each in turn.

The Gate-Keeping Function of Citizenship

To borrow from Waldron's definition of property, citizenship crafts a system of rules governing access to and control of a scarce resource, in this case, the precious good of membership in our human communities.⁶¹ It demarcates who is included within the polity and who is excluded from gaining access to its bounty. States in the real world tend to be stringent, if not outright unyielding, in terms of drawing and enforcing the boundaries that distinguish those who belong from those who do not.⁶² Every state currently limits access to its citizenship, typically granting automatic entitlement only to a select group of beneficiaries according to ascriptive principles of birthplace and bloodline (*jus soli* and *jus sanguinis* respectively). Even countries such as Canada and the United States, which both have a long tradition of welcoming immigrants, rarely fall below an average of eighty-five to ninety percent of their populations being “natural-born.” Focusing on gate-keeping, it is notable that “citizenship is not only an instrument of

closure, a prerequisite for the enjoyment of certain rights, or for participation in certain types of interaction. It is also an object of closure, a status to which access is restricted.”⁶³ In other words, politics tend to follow through on their right to exclude. This is in part based on the rationale, explicated most eloquently by Michael Walzer in *Spheres of Justice*, that once a person is included in the actual community of membership, that person is entitled (or will eventually be entitled) to the complementary right not to be excluded from any additionally attendant rights and privileges. This simultaneous quality of the right to exclude and the right not to be excluded precisely corresponds to the twin elements I identified earlier as central to the broad conception.⁶⁴

Despite much academic fanfare about the demise of borders, in practice, entry into a foreign land is still highly restrictive for most of the world's population, especially for those arriving from low-income or politically unstable countries.⁶⁵ Only citizens have an unconditional right to enter and stay in the state (and even this principle has been under pressure in the post 9/11 years); noncitizens do not.⁶⁶ In today's world, international mobility is anxiously guarded by border enforcement agencies whose main task is to monitor, regulate, and ultimately restrict unwanted admission.⁶⁷

Just as with property, for citizenship the right to exclude is limited in practice. There remains a set of obligations on the admitting state to the individual seeking entry which are nonetheless balanced by the range of legal sanctions that can be imposed against a person who seeks to “trespass” or enter the territory without permission. The ultimate sanction for such breach, whether in property or citizenship law, involves physical removal from the estate/territory (unless such unauthorized admission is later regularized by the host country or the operation of its laws, a point to which I return in Chapter 6). Although certain restrictions apply, both systems create and maintain legal boundaries that are backed up by force. These boundaries are neither natural nor apolitical. Instead, their erection and coercive enforcement protect the interests of those designated as legitimate title bearers, while imposing severe legal sanctions against those who are perceived (by these very same laws) as unauthorized entrants who breach them.

Both property and citizenship regimes share another important characteristic: they typically preserve unequal structures of holdings that tend to concentrate control over wealth. In the context of property, we find volumes of competing arguments that attempt to justify this unequal system of accumulation and transmission. No similar elaborations or theoretical justifications are found with respect to citizenship. There are also no convincing explanations for why a draconian system of legal exclusion can legitimately be perpetuated by reliance on the “natural” event of birth in the

conferral of membership entitlement. Thinking through this analogy yields yet another surprising revelation: whereas the principle of automatic and irrevocable birthright has been roundly criticized as a basis for the intergenerational transfer of property, the entail-like transmission of citizenship has largely escaped similar scrutiny. That is the case despite the fact that such transmission is relied upon by governments (rather than a select class of estate owners)—thus inviting more rigorous, rather than more lenient, standards of review and accountability. More important still, citizenship as a form of inherited property affects a far greater number of individuals in the world, making it quantitatively and qualitatively far more crucial today for discussions of global justice and equality, than any antiquated—and in most countries now prohibited—form of perpetual transfer of landed estates.

The Opportunity-Enhancing Function of Citizenship

So far, I have emphasized citizenship's gate-keeping function, or the right to exclude. Fortunately, citizenship does more than delimit access and preserve unequal accumulation of wealth and power in the hands of birthright heirs. It also includes the right not to be excluded. Just as fiercely as it externally excludes nonmembers, citizenship can also act as an internal leveler of opportunity by providing the basic enabling conditions for members to fulfill their potential. The argument for such inclusion is simple yet powerful: citizens enjoy these entitlements, which are *of right*, on the basis of formal equality of status, which forms the bedrock of their membership in the community.⁶⁸ This I label citizenship's *opportunity-enhancing* (or enabling) function.

Like other types of property, citizenship allows its possessor to exercise freedom and autonomy through what is legally his or hers and to protect their rights against the world. But the right not to be excluded goes beyond this negative liberty. It involves a positive dimension as well. This positive component entails, just like property, a bundle of sticks. This translates, at minimum, into the security of holding an irrevocable membership status and its incumbent social and political benefits. Save in exceptional circumstances, this security of status cannot be denied or unilaterally taken away by one's government or fellow citizens.⁶⁹ This stands in sharp contrast to the vulnerable situation of nonmembers who have already become part of the social fabric of the community, but lack precisely the property-like protections that attach to citizenship.

But the enabling function of citizenship guarantees more than just protection from deportation.⁷⁰ For each member, it bestows the right to participate in the governance of the polity. It further provides, at least in its

ideal type, the threshold condition of freedom-from-want as another classic expression of the right not to be excluded.⁷¹ It is here that Reich's argument about treating governmental benefits as property to which citizens hold a rightful claim is connected to the idea of providing essentials (both substantive and procedural) for basic security and independence for members of the body politic.⁷² Rather than merely operating to restrict access through its gate-keeping function, citizenship can be seen as an enabling institution that embodies our collective judgments about the shape of a fair society, offers members benefits and entitlements on an equal basis and, at the same time, assists in fostering their well-being.⁷³

In many respects, the opportunity-enhancing function is far more powerful in the context of citizenship than it is for most other types of property, material or abstract. Such entitlement guarantees that each member will enjoy "a share in the protection conferred on the group as a whole over some asset and its wealth-potential."⁷⁴ Such a protection implies (even on the narrow reading) that each individual will gain a fair share of equal liberties, access to public goods, and nondiscriminatory participation in the economic and labor markets.⁷⁵ The broader conception would, however, likely endorse a more robust conception of enabling. Shared citizenship could include the duty to abolish absolute deprivation and seek a standard of relative prosperity in its place. Such a broad conception could further suggest that part of the state's role as creator and enforcer of membership entails the obligation to mitigate inequalities among social actors and that participation in a common polity entails an expectation of generosity by those citizens with greater authority and wealth toward those without it. This expectation flows from the basic premise that there is a joint responsibility of all citizens to their larger community. The idea of enabling might also lend support to an interpretation of full membership that requires the political community to provide each member with those basic life standards and infrastructure services (clean water, police protection, health, education, shelter, and the like) that are seen as preconditions for achieving a decent life.⁷⁶

None of these markers of opportunity, which represent in their own ways different manifestations of the right-not-to-be-excluded, are premised on a strict idea of equalization of *results*. Instead, citizenship's enabling function is better understood as a means by which we can shift emphasis onto the goal of leveling the ground and achieving equalization of *starting points*. As such, it is fully compatible with the moral intuition that people can justifiably claim the rewards of their enterprise as a result of relevant efforts.⁷⁷ However, unlike the narrow conception of property, which em-

phasizes the self-interest of individual traders at the expense of losing sight of the existence of a community, the broad conception of property treats the success of individuals as being predicated, to some degree, on larger societal conditions.⁷⁸ In well-off polities, this is often translated into a robust set of conditions such as effective government, the rule of law, protection against foreign invasion, domestic peace and security, and stable markets, as well as additional supporting conditions such as public investment in infrastructure, higher education, arts and culture, and various social services.⁷⁹ Although the precise definition of what is included in the “basket” of citizenship’s benefits may vary (even among OECD countries), a societal commitment to providing the basics differs sharply from the narrow, fend-for-oneself conception. The latter focuses on negative liberty as a way to restrict the encroaching state; the former treats citizenship’s opportunity-enhancing function as corresponding with positive liberty as well as creating an environment that is conducive to fulfilling the capabilities of those who belong to the body politic.

Undoubtedly, meeting these requirements imposes a heavy burden that is not fully borne even by the world’s most affluent and generous polities, let alone by resource-strapped or corrupt governments. But it serves as a normative yardstick against which we can measure how countries fare in their enabling commitment.⁸⁰ There’s another message to be drawn from this as well, and one which is crucial to my central argument: automatic entitlement to political membership as encoded in today’s birthright citizenship laws has *itself* become a valuable “property,” generating for its holders secure access to certain common goods and the enjoyment of the basic infrastructures that permit human flourishing, in addition to establishing for those who count as members an enforceable right to participate in the governance of their shared polity.

Membership boundaries that extend across generational lines can now be viewed in a more complex light: not only are these boundaries sustained for cultivating bonds of identity and belonging (as the conventional argument holds), they also serve a crucial role in preserving restricted access to the community’s prosperity and power. The latter is jealously guarded at the juncture of transfer of “ownership” from the present generation of citizens to its progeny. In other words, birthright citizenship mechanisms provide cover through their presumed naturalness for what is essentially a major (and currently untaxed) transmission of wealth and enabling resources from one generation to another. Ours is a world of scarcity; when an affluent community systemically delimits access to membership and its derivative benefits on the basis of a strict heredity system that effectively

resembles an entail structure of preserving privilege and advantage in the hands of the few, those who are excluded have reason to complain.

Entailed Property and Birthright Citizenship: Analogous Transmissions?

If we were to look for a pattern that closely resembles the structure of birthright transmission of entitlement, we would find it, somewhat surprisingly, in the property inheritance regimes that date back to medieval England.⁸¹ There, we find the now long discredited institution of the *fee tail* (or entail). In the language of the early common law, fee tail involved a landed estate that automatically descended from A to “B and the heirs of his body” and continued so passing through the descending line in order to keep the landed estates squarely in the hands of a small elite of powerful and wealthy families.⁸² Technically, entail was a legal means of restricting future succession of property to the descendants of a designated person. It offered a tool to preserve land in the possession of dynastic families by entrenching birthright succession, while at the same time tying the hands of future generations from altering or alienating the estate they inherited from their predecessors.

The history of the entail dates back to the early medieval period. It was already in use by 1285, when the English Parliament enacted the *De Donis Conditionalibus* statute in response to petitions from “landowners who wanted to bestow on a child and the heirs of his or her body an inheritable estate in land that could not be alienated by fee simple.”⁸³ The *De Donis* statute thus secured a special interest in land, which, as John Orth explains, created a distinctive pattern of succession whereby each successive holder was limited to use of the land for life without the power to alter the chain of transmission or to dispose of the property.⁸⁴ The purpose of the entail was to keep the estate strictly within the possession of the heirs of the landed aristocracy in a social order where the hold on land was intimately tied up with political authority.⁸⁵ Such birthright transmission of wealth and power was designed to be infinite in duration, transferring the land from one generation to another in perpetuity.

Successive generations, that is, the aristocratic progeny, were not always pleased with the restrictions that entail attached to the inherited estate. English lawyers eventually developed a method known as “common recovery,” which permitted inheritors to “dock” (or “break”) the entail and “seize” the estate, thus effectively removing the original restraint that ran to A for life, then to B and the heirs of his or her body, then to C and the heirs of

his or her body, and so on.⁸⁶ Such legal maneuvering, which permitted the chain of transmission from one generation to another to be broken, was eventually approved by the English courts in the landmark 1472 decision of *Taltarum's Case*.⁸⁷

Interestingly, the legal institution of entail later migrated to North America with the English colonists, who created estates in fee tail, primarily in the southern colonies such as Virginia, Georgia, and North Carolina.⁸⁸ One of history's little ironies was that it became harder for descendants of landed estates in the American colonies to dock or cut off the entail than for their counterparts in England to do so because certain colonies, such as Virginia, specifically enacted statutes that prohibited common recovery.⁸⁹ Thus, once an entail was created, the transfer of property to the heirs of one's body, and to them alone, "was of indefinite duration—the original perpetuity, in fact."⁹⁰

It should come as no surprise that this aristocratic method for preserving land in the sole dominion of certain families, which perpetuated their disproportionate wealth and political power, sparked the ire of American revolutionary reformers. Thomas Jefferson, for example, led the effort to abolish the entail in his home state of Virginia by proposing the legal extinguishment of entailed estates to the Virginia Assembly in 1776. As many legal historians have observed, Jefferson counted the introduction of this legislation among his foremost achievements.⁹¹ What is less well-known is that James Madison, the champion of property rights in the new republic, also supported the abolition of fee tail in Virginia and elsewhere in the United States.⁹² Madison, like Jefferson, held that the "abolishment of fee tail [would] shorten the longevity of inherited wealth and thereby lessen the 'proportion of idle proprietors' in Virginia society."⁹³

For American republican lawyers, the hereditary transfer of privilege in the form of the "entailment of land appeared to be [one of] the most glaring vestiges of a corrupt past."⁹⁴ It was associated with feudal encrustations on the common law that preserved and perpetuated England's social hierarchy. For Jefferson, explains John Hart, abolishing the entail "was a key part of a 'system' of reforms 'by which every fibre would be eradicated of ancient . . . or future aristocracy and a foundation laid for a government truly republican.'"⁹⁵ It was a central component of this project because entailed transfer of estates by creating a bloodline of land owners diminished opportunity for those who did not enjoy such inheritance. Such exclusivity therefore defeated the broader social and economic agenda of the "republican laws of descent and distribution," designed to gradually contribute to "equalizing the property of the citizens."⁹⁶ What is more, the concern was not only with accumulation of great wealth, but with the *permanence* of

such riches in the hands of certain families. Such permanence was the result of the *birthright* nature of entail, which guaranteed entitlement to successive descendants simply by virtue of their status as “the heirs of [the original landholder] and his body.” No other criteria were imposed, nor could a later generation alter this automatic grant. This led to a concern, already expressed by William Blackstone in his magisterial 1766 *Commentaries on the Laws of England*, that the Nth generation of heirs to an entail might become morally corrupt, lazy, and “disobedient when they knew they could not be set aside.”⁹⁷

In America, instead of cultivating a civic republican ethics of virtue, the perpetuation of property in certain families through mechanisms such as the entailment of land created a nascent American aristocracy.⁹⁸ What is more, as Blackstone predicted, heirs of such families knew that they could not be cut off from the chain of birthright transmission; the republican concern was that they would become disobedient and socially unproductive members of the polity.⁹⁹ If individuals were to be prevented from inheriting great wealth in perpetuity, irrespective of their talent, work ethic, and virtue, the entail would have to be replaced by a more egalitarian distribution of property.

Another dimension of the critique of entail focused not so much on the moral character of the birthright recipient, but on inefficiency; those who were guaranteed wealth as a matter of birthright, had little incentive to maximize the value of their estates. The preamble to the 1776 Virginia statute that abolished entailed estates did not shy away from explicitly expressing such concerns: “the perpetuation of property in certain families, by means of gifts made to them in fee taille, is contrary to good policy, . . . [it] discourages the holder thereof from taking care and improving the same [the estate], and sometime does injury to the morals of the youth.”¹⁰⁰ An even more pointed argument about inequality is articulated in the 1784 legislative act of North Carolina that similarly abolished the fixed and perpetual transfer of wealth and opportunity by birthright. Its Preamble states that “entails of estates tend only to raise the wealth and importance of particular families and individuals, giving them an unequal and undue influence in a republic.”¹⁰¹

This opposition to the perpetual birthright transmission of entitlement was extended, at least conceptually, into the realm of citizenship. As James Kettner argues, naturalization (the process of volitional admission to the polity rather than birthright membership) provided the model of republican citizenship in this period.¹⁰² This vision was enacted into law relatively early in the history of the republic, in 1790, only a few months after ratification of the constitution.¹⁰³ Obviously, at this time the definition of eligibility for

inclusion in the body politic was itself deeply laden with race and gender-based exclusions: full membership was reserved exclusively for the “free white person.”¹⁰⁴ But the notion of acquiring (rather than inheriting) citizenship was not predicated only on racial and gendered categories. Something else had to be established. According to a new model, a nonmember who voluntarily and affirmatively decided to join the republic was adopted into the polity as a full member after becoming part of its social and economic life and taking an oath of allegiance. This process of postbirth admission, which emphasized agency and volition, indeed seemed to better reflect the ideal of political membership as conceived by the republican and liberal traditions, which emphasized choice and consent of the governed as the root of legitimate authority.

This sentiment informs an oft-cited passage in John Locke’s *Second Treatise of Government*: “a child is born a subject of no country or government.” When that child comes to the age of discretion, continued Locke, “then he is a free-man, at liberty what government he will put himself under; what body politick he will unite himself to.”¹⁰⁵ This rejection of imposed, or ascriptive membership, finds striking parallels in early American republican thought, and as Jefferson fittingly formulates in the context of access to volitional citizenship, “all men [have a right to] depart from the country in which chance, not choice has placed them.”¹⁰⁶ Such insistence on severing the accidents of station of birth in assigning political membership (an ideal, which we must not forget, was initially conceived to apply merely to a small fraction of the population, namely free, white men) still remains a far cry from the reality that is in place under the current world system for the vast majority of the world’s population. What is particularly surprising is that the alternative path that has been chosen (reliance on automatic and hereditary transfer of membership entitlement) resembles some of the most deeply criticized, and ultimately abolished, feudal mechanisms of inheritance: the entail.

Whereas the archaic institution of the hereditary transfer of entailed estates has been discredited in the realm of property, in the conferral of citizenship we still find a structure that strongly resembles it. Inherited entitlement to citizenship not only remains with us today; it is by far the most important avenue through which individuals are sorted into different political communities. Birthright principles strictly regulate the entail of political membership for the vast majority of the global population. Membership attributed through accident of birth secures the transmission of membership entitlement for a limited group of beneficiaries, either on the basis of bloodline or birthplace. These beneficiaries, in turn, gain the right to pass the benefit along to the next generation by inheritance, and so forth: it is

this structure that effectively recreates the “fee tail” in the transmission of citizenship.¹⁰⁷

To recognize the surprising similarities in form and function between birthright citizenship and inherited property of this particular kind is to identify a striking exception to the modern trend away from ascribed status.¹⁰⁸ This birthright-transmission mechanism, which is still exercised today, cannot be dismissed as a mere historical accident, given that the question of legitimizing political authority and property is central to the liberal, democratic and civic-republican intellectual traditions. This only makes the link that persists between political membership and station of birth—a connection that has been both ignored and taken for granted—ever more puzzling and in urgent need of a coherent explanation.

Whereas the delineation of enforceable membership boundaries (citizenship’s gate-keeping function) has been challenged in recent years as an offense to the universality of our shared humanity, both proponents and opponents of bounded membership have paid scant attention to the crucial wealth-preserving aspect of hereditary citizenship—the dramatically differential opportunity structures to which individuals are entitled, based on the allocation of political membership according to predetermined circumstances of birth. This is a blind spot of citizenship theory. Unlike the critical accounts of entailed property regimes, from Blackstone to Jefferson to Madison, scholars of citizenship regimes have neglected to turn their gaze to the largely analogous form of strict intergenerational transfer that still persists in the realm of birthright transmission of membership entitlement. The account presented here, which establishes a conceptual analogy between property and citizenship, brings to the fore familiar criticisms that have been leveled against antiquated and unequal property transfer regimes in order to highlight the global distributive implications of prevalent structures of citizenship transmission. Such an inquiry is ever more urgent given that a transmission mechanism of this kind has, in a world like our own, the particularly pernicious effect of interfering with, and often capping forever, the life chances of individuals.

MY CRITICAL ACCOUNT of birthright citizenship as a complex type of inherited property is not targeted against the political ideal and institution of citizenship. Full membership in a self-governing polity grants invaluable protections for the right-holder, especially so for the less advantaged: it guarantees for even the most vulnerable within a given society the fundamental security of an inalienable right to membership, the cultural and psychological benefits that attach to such a protected membership status, and the power to make claims in collective decision making as an equal stakeholder. In a

world riddled with deep social and economic inequality like our own, the value of these protections cannot be overestimated.

Such recognition should not prevent us, however, from condemning the assumption that reliance on birth in the transmission of the political membership somehow resolves the serious boundary making and wealth-preserving dilemmas that attach to such entailed transfers. The crucial point here is that the analogy between inherited property and birthright citizenship permits us to see the latter in the light of the former: as a carefully regulated system for limiting access to scarce resources to those that “naturally” belong within its bounds as the heirs, not of “one’s body,” but of the *body politic* itself.

To treat birthright citizenship as if it were a special kind of property is to open the door to the application of core insights from inheritance theory to the citizenship arena. In this way, we can begin to address the inequality of starting points that attaches to the intergenerational transfer of membership entitlements according to birthright citizenship. Having formulated the puzzle of birthright citizenship and demonstrated that it hits hardest in perhaps the least expected realm of social life—namely, that of *political* membership, a realm we typically associate with participation, voice, and accountability, but certainly *not* inherited office or station of birth—it is now time to open up the debate, hearing the range of responses that could be leveled at the analogy between birthright citizenship and inherited property.

Abolishing versus Resurrecting Borders: Moving Beyond the Binary Options

Our mind is capable of passing beyond the dividing line we have drawn for it. Beyond the pairs of opposites of which the world consists, other, new insights begin.

HERMANN HESSE (1877–1962)

IN THIS CHAPTER, my focus shifts from framing and explaining the puzzle of birthright citizenship to seeking remedies for the acute distributional problems that attach to this strict system of membership allocation in an unequal world. The previous chapter showed just how the present allocation system has a very real effect on all our lives: it solidifies and naturalizes a system of unearned privilege, which, in turn, perpetuates stark global inequalities in life conditions, choices, and opportunities. I will explore several possible responses to these deep-seated problems, each staking out a different vision of the future of citizenship in a globalizing world.

I begin by elaborating on two visions that demarcate a rigid dichotomy: *abolishing bounded membership altogether* versus *resurrecting ever higher and less penetrable borders*. These positions define contrasting trajectories: one envisages a world without borders, where citizenship is seen as a global affiliation to which every person has access by virtue of membership in the larger family of humanity, whereas the contrasting vision adopts a strictly protectionist, or fortress interpretation of sovereign self-determination. After considering the options of abolishing or refortifying borders, I will explain why neither offers a fully adequate response to the challenges that are currently attached to birthright citizenship.

Abolishing bounded membership altogether risks forsaking the presently inalienable properties that attach to citizenship—a secure legal status, an enforceable bundle of rights, and a meaningful source of collective identity,

to name but a few examples—without ensuring that a similar content will be replicated under an alternative regime of world citizenship. The resurrect-the-border option, for its part, artificially and dangerously ignores the reality of growing economic and political interdependence that binds us ever more closely to those beyond our immediate membership boundaries. It relies instead on an unrealistic and unstable, not to mention morally unappealing, fortress mentality of building ever more fearsome blockades around our jurisdictions and dispatching military-like brigades to aggressively exclude those deemed unwanted from our protected territory.

These serious shortcomings lead me to explore several alternatives that move beyond the binary logic of either erasing or re-erecting borders. Specifically, over the course of this chapter and the next, I identify four such options: (1) commodifying citizenship; (2) “unbundling” its components; (3) reallocating membership titles through more open admission policies; and (4) redistributing opportunity with the goal of improving the enabling function of citizenship everywhere. I will argue in Chapter 3 that the latter option—applied to the realm of citizenship through the idea of the birth-right privilege levy—provides the most viable and balanced remedy to the problem at stake. In the final part of this chapter I analyze the options of commodification and unbundling, demonstrating that, despite their very different starting points, both lead to the erosion of the important role that democratic governance has in shaping membership and its associated benefits. In turn, this may lead to a splintering of the resources and protections that we currently enjoy as equal citizens. The main concern here is that once broken up, the collective achievements of citizenship, just like Humpty Dumpty, may never be put together again.

Two Extreme Solutions and their Limitations

Citizenship literature has witnessed the proliferation of prophetic arguments telling us that the deconstruction of national borders is imminent and that we shall soon bear witness to an alternative worldwide or cosmopolitan conception of political membership. Although there are significant variations on this theme, they ultimately thrust forward the conclusion that citizenship is being displaced within and beyond the nation-state level and, as a matter of justice, ought to be reallocated globally in the most expansive of ways: namely, world citizenship. At the other end of the spectrum we find the resurrect-the-border model of response, which embraces erecting ever higher walls to restrict the flow of those defined as noncitizens into predefined territorial and membership units. Various proposals stake out a

middle ground, such as managed migration solutions, multilevel governance regimes, cross-border democratic participation, linking international mobility to development efforts, to name but a few. This range of options illustrates that presently there are no simple and widely accepted answers with which to respond to the challenge of “re-imagining the political community.”¹ For the sake of analytical clarity, however, it is helpful for us to focus on the world citizenship and the resurrect-the-border models because they represent the two opposite ends of the spectrum: a vision of a utopian world without borders on the one hand and a fortress paradigm of sovereign self-determination that further locks in disparities between jurisdictions on the other.

World Citizenship

One alternative to the uncritical acceptance of the intimate alliance between birth and political membership is to advocate the abolition of borders and bounded membership, embracing instead a concept of world citizenship.² In theory, this option appears to offer a perfect resolution to the problem of the arbitrary nature by which citizenship is currently assigned. Instead of perpetuating privilege and disadvantage through inherited membership entitlement in different countries, all individuals would hold an equal status as members of a political authority of a specifically global kind. Thomas Pogge best describes this vision, which he calls legal cosmopolitanism, as being committed “to a concrete political ideal of a global order under which all persons have equivalent legal rights and duties, that is, are fellow citizens of a universal republic.”³

A muscular vision of world citizenship stands in a zero-sum relationship to national (or any other level of bounded) membership; new forms of citizenship are seen as “actually or ideally displacing the old.”⁴ I later challenge this zero-sum assumption, but for now suffice it to say that this vision of world citizenship, which almost inevitably implies that there soon emerge a unified federal structure or a worldwide “bureaucratic command government,” is unattractive for several reasons.⁵ For one, the remedy is too drastic; it might well amount to throwing out the baby with the bath water.⁶ To remove borders altogether is to lose an important feature of modern citizenship: namely, the entitlement possessed by each individual to enjoy secure legal standing in the home community to which she belongs as an equal and in which she has title as a full participant in the governance of the commonwealth.⁷ While it is not impossible to imagine that such legal standing and participation might one day be replicated at the global level, it is not clear that world citizenship ought to be regarded as an aim. If we believe that the regulation and articulation of many aspects of our collective life

properly belong at competing and potentially overlapping levels or layers of governance (the local, national, regional, transnational, cross-sectional, and so on), such a goal becomes even less attractive. In its ultimate manifestation, the ideal of world citizenship stands not as a complement to these other layers of membership and participation, but as its stark alternative.⁸ Redrawing the world map *de novo* by diminution and erasure of the various membership lines that provide us meaning and context is not only an unrealistic option in a world of entrenched borders and interests, but also a dangerously top-down approach that may spectacularly backfire, unless we have some firm guarantees of its prospective success. Unfortunately, no such assurances are currently on offer.⁹ The abrupt removal of citizenship's boundaries, may also remove many of its enabling capacities without guaranteeing a better mechanism of leveling opportunity globally.¹⁰

If all that citizenship stood for was the right to exclude (the narrow vision), without the complementary right not to be excluded (the broad vision), this outright abolitionist vision could arguably be defended as a worthy path toward eradicating the problem of "tying people to the land of their birth," as Joseph Carens memorably put it.¹¹ However, political membership cannot be so easily reduced to any single characteristic, as I seek to demonstrate over the course of this book. A vision based on a unitary, world government, in lieu of the panoply of more pluralistic membership communities is highly problematic.¹² What is more, transferring the weight of political membership from a bounded community to the global scale risks washing away the entire collective identity aspect embedded in the various "portals" of citizenship as we currently understand it. It may also lead to the disintegration of the social bonds and mutual responsibilities that, through joint action and decision making, help bind people together and motivate them to redistribute internally the benefits of membership in a relatively stable and self-ruling political community.¹³ Another set of concerns relates to the potential cultural and social capital losses that are likely to occur if memories are all that remain of our rich and diverse forms of modern statehood. Each country's distinct and inevitably complex history, identity narratives, political struggles, social experiments, linguistic diversity, and so on, would potentially be lost. Some have further argued that the proper functioning of democracy itself to a certain extent relies on boundaries which help define who is representative to whom and who is accountable to whom.¹⁴ Creating common institutions that serve the cross-sectional interests of a heterogeneous constituency is seen as equally important, thus addressing potential collective action problems of trust, risk, and the motivation to contribute to the larger collective.¹⁵ Political economists, for their part, have stressed the importance of scale for economizing on the costs of administering a political system, in terms of aggregating individual preferences in

a democracy or executing a chosen public policy. These costs are likely to increase with the size of the territory and citizenry over which authority is exercised.¹⁶

Finally, arguments in favor of a world citizenship model remain notoriously abstract. Typically, they lack even the minimum level of institutional concreteness that is needed to enable this model of new world-state membership status to work in practice.¹⁷ No answers are provided to even basic queries, such as what type of benefits and obligations global citizenship would bestow upon its members, which governance structures it would entail, what administrative procedures it would follow, what equality guarantees its citizens would enjoy, and so on. It also remains to be clarified whether (and if so, how) meaningful opposition could be articulated in the context of a mega-state bureaucracy of unprecedented proportions. Similar concerns arise when contemplating the level of autonomy that minority communities, or even smaller nations, would obtain in a global-citizenship structure, given that their limited numbers would make it difficult to win binding concessions through majoritarian politics.¹⁸ Furthermore, where would we escape to if we deeply disagreed with the foundational political choices and actions adopted in our name by fellow members of the world polity? Ironically, we might find ourselves more exposed to the “tyranny of the majority” or “soulless despotism” (as Kant put it) in this brave new borderless world than in our current, imperfect, bounded polities.

It thus requires a great leap of faith to assume that a new concept of world citizenship will inevitably prove to be more democratic or egalitarian than the current alternatives. This is a serious concern that defenders of world citizenship from a legal cosmopolitan perspective are yet to convincingly address. Removing membership boundaries *tout court* may backfire miserably by crippling the opportunity-enhancing (or enabling) work that bounded citizenship currently supports within existing polities.¹⁹ Changing the *locus* of citizenship does not guarantee, by itself, a more just distribution of wealth, voice, or opportunity worldwide. The concern here is that if citizenship were to become a “flat” membership status, then we might see a thinning out and watering down of the very contents associated with the concept rather than a global application of the relatively robust and successful formula of redistribution and mutual responsibility which characterize the self-governing polity that has been achieved (however imperfectly) at the domestic level.

Resurrect the Border

Diametrically opposed to the world-citizenship model is the position taken by those who seek to refortify existing borders and strengthen the distinc-

tion between “us” and “them.” This resurrect-the-border argument uses the naturalizing masks of *jus soli* and *jus sanguinis* to reify the distinction between the legitimate property holder (the citizen) and the illegitimate trespasser (the alien). It is fueled by a deep sense of crisis or loss of control over borders, which requires in the eyes of its proponents the adoption of immediate and tough measures to regulate the international movement of people.²⁰ If borders are refortified, it is argued, each polity can then focus on its own challenges, instead of meddling in or trying to ameliorate the harms caused by other states’ problems. *Prima facie*, this technique of isolation makes it possible to ignore, or treat as irrelevant, the needs and concerns of those who are legally and physically excluded (through the combined effects of hereditary citizenship, regulated admission, and guarded territorial borders) from our jurisdiction of membership, care, and responsibility.

In this respect, the resurrect-the-border option resembles a variant of the narrow conception of property; it highlights and almost exclusively prioritizes the right-to-exclude function of bounded membership. In this view, owners are perceived to hold absolute dominion, permitting them to ignore the social relations and web of interactions that ultimately maintain the security of their title. Citizenship regimes, just like regimes governing property, represent a form of power, however; the principles governing acquisition and transfer inevitably affect the interests not only of members but also of nonmembers.²¹ In the current age, no country is an island. We do not live alone, and members of wealthy polities in particular must take account of the fact that their inherited membership entitlements do not exist in a vacuum. The barriers to admission erected through reliance on ascriptive factors of blood and soil in bestowing citizenship (combined with guarded and resurrected borders) create coercive effects on those trying to get in.²² Given that the vast majority of the world’s population remain excluded from well-off polities under the current birthright regime, it quickly becomes clear that neglecting their needs and interests simply because extant laws define them as nonmembers is not only morally wrong; it is also politically unwise. One can only hope that we will not have to learn this lesson the hard way. Of the many worse-case scenarios to ponder here, consider the possibility of experiencing a twenty-first-century worldwide economic crisis which will make the U.S.-lead depression of the 1920s and 1930s pale in comparison. The point here is not to scaremonger but to insist that, even from the perspective of those concerned about loss of control, a plausible argument can be made in favor of preempting such a crisis before it unravels rather than naively assuming that barricaded and resurrected borders can provide security and stability in case of a calamity on a global scale.

Instead of responding directly to these substantive challenges in a world of increased interdependence, proponents of the resurrect-the-border approach prefer to retreat behind a curtain of formalistic arguments. For instance, they emphasize the absence of an international human right to freedom of mobility across national borderlines (with the exception of providing immediate relief to asylum seekers escaping persecution) or the lack of any “hard law” commitment to establishing a worldwide safety net below which no one should be allowed to fall.²³ True, determining who shall enter and remain on its territory does remain an important prerogative of the state, although this is no longer seen as the impenetrable bastion of sovereignty that it was in the past.²⁴ Similarly, we face no shortage of visionary ideals and blueprints for establishing a global threshold of subsistence and development for the betterment of all. Perhaps the most familiar example here is the UN Millennium Declaration (ushered in in 2000 at the largest-ever gathering of world leaders), which has since been translated into a roadmap of concrete action goals. Known as the Millennium Development Goals, this eight-point plan includes core priorities such as eradicating extreme poverty and hunger, achieving universal primary education, promoting gender equality, reducing child mortality, and so on.²⁵ The sticking point remains whether to treat such commitments as voluntary or mandatory. Governments, multinational corporations, and various private and public actors may choose to assist the residents of other countries by means of foreign aid, trade, charity, and investment, if they so wish. But, at present, no norm of international law requires them to do so.

Ultimately, however, defenders of refortified borders cannot remain blind to the fact that we live in a world of increased interdependence in which no polity is fully immune to the effects of events occurring outside its borders—be they civil war, currency meltdown, or environmental disaster. It is perhaps the implicit acknowledgment of such interdependence that leads proponents to seek refuge behind increasingly high walls.²⁶ To erect such walls, many countries have in recent years adopted a set of interrelated policy measures: significantly restricting their immigration laws; allocating greater resources and personnel to land border control; tightening admission restrictions; entering regional agreements to establish “smart borders;” building virtual and actual fences along the perimeter of their territorial edges; and vowing to get tough on illegal immigration.²⁷ Clearly not designed to remedy the global-distributive deficit of birthright citizenship, these defensive measures are perhaps best interpreted as anticipatory responses to a potential scenario in which significant emigration pressures will be brought to bear by the world’s less prosperous and less stable regions, where the bulk of the global population resides. As Bimal Ghosh observes,

“no other source of tension and anxiety has been more powerful [in the west] than the fear, both real and perceived, of huge waves of future emigration from poor and weak states in the years and decades to come.”²⁸ Many of these fears remain unfounded, but this is beside the point.²⁹ Re-fortified borders are perceived, in this context, as essential building blocks in the larger toolbox of strategies to insulate affluent, stable, rule-of-law countries from the threats of uncontrolled immigration, national security threats, ethnic and religious strife, poverty, disease, war, and despair, that seem to plague much of the world. As one scholar bluntly asserts, “the first world more and more sees the second either as a threat or a Pandora’s box of insoluble problems, for whom nothing much positive can be done but from which one should above all be isolated, so as not to sink into its quick sands or be contaminated by its illnesses.”³⁰

These fears may nourish an extreme, Hobbesian-survivalist variant of absolutist exclusion. The obvious problem with this intense manifestation of the resurrect-the border approach lies in the real concern that it may be fueled by (and in turn inflame) xenophobic, often racist, anti-immigrant or antiminority sentiments. It may also create a rift among citizens, who may question the true membership standing of some (due to their ethnic or national background, religious affiliation, ideological leaning, and so on), and thus create what I have elsewhere called the “degrees of citizenship.”³¹ Concerns about such internal rift and discrimination or a category of second-class citizenship are among the oldest in the book; their study has occupied some of the brightest scholars from the fields of political science, sociology, law, and philosophy.³² In the history of citizenship, the revolt against second-class citizenship has been a powerful tool for mobilization, leading, at crucial junctures, “to the extension of existing rights to new groups, thus broadening the body politic—the community of members.”³³ Formal inclusion, however, has never been enough to guard against the painful experience of exclusion and alienation by members of minority communities who are subtly yet persistently categorized as alien, dangerous, and threatening; a “fifth-column,” to refer to a familiar catch phrase.³⁴ In the post 9/11 era, the reality of these disturbing cracks in citizenship as a shared marker of identity and rights has become all too vividly apparent.³⁵

Rejecting these divisive tendencies, others have argued in favor of regulated yet penetrable borders, which permit cross-frontier mobility so long as it is controlled by the relevant admitting entity. Under this approach, it is permissible for each polity to unilaterally seal the border under certain circumstances, such as an extreme national security crisis that may call for drastic though short-lived measures. A classic example of this pattern at work is the self-imposed blockade that the United States enforced on its

borders immediately after the September 11 attacks.³⁶ The more complex judgment calls inevitably arise in times of peace, when no immediate threat is on the horizon. Here, we typically find those in favor of semiclosed borders appeal to ethical particularism or the priority of special ties and duties owed to fellow citizens and co-residents of our country—in whatever way such membership boundaries are defined.³⁷ Although presenting an array of arguments to make their case, the common strategy shared by defenders of regulated (but not impenetrable borders) is to minimize the extent to which current practices of inclusion and exclusion rely on the legal construction of citizenship's automatic transfer according to accidents of birth. In this way, the boundaries of the political community are implicitly reconstituted as a natural given. This allows for a shift in focus from the dilemma of the chance attribution of birthright citizenship to questions concerning how best to protect the prosperity, security, and freedom of those who already belong as full members of the collective. Under such conditions, little room is left for contemplating the arbitrariness or fairness of extant membership rules or the (in)justice of birthright principles. Similarly, debates concerning the potentially detrimental distributional effects of *jus soli* and *jus sanguinis* principles are generally inhibited.

Returning to the actual practice of politics in the real world, it is important to note that even taken on its own merits, the policy argument for resurrecting the borders suffers acute inconsistencies. First of all, the fortress mentality raises profound ideological difficulties for those liberal democracies that defend human rights values, support greater freedom in the exchange of goods and capital across national border lines, and also advocate increased openness to trade and democracy in societies traditionally governed by more centralized regimes. Second, most traditional immigrant-receiving countries do not actually wish to adopt a zero-tolerance immigration policy. Rather, they seek to better manage the definition of who may be included in their polities, and according to which criteria. Such attempts have led to reshaping the boundaries of inclusion through immigration; for example, by adopting stricter requirements for some (e.g., asylum seekers) and more relaxed admission procedures for others (e.g., skilled migrants). Furthermore, in spite of the general trend toward restricting the entry and residence of nonnationals, we are witnessing an increased reliance on professional-employment visas (including the H1-B, TN, or L visas in the United States, for example), along with fierce competition, or a global race for talent, among receiving polities to attract highly skilled immigrants to their respective markets.³⁸

Third and lastly, we live in a deeply fragmented world, in which too many elected governments in too many countries fail miserably in the provision of security and freedom to their peoples, the protection of civil lib-

erties, or even the most basic subsistence needs. Although leaders of such countries must be held to account, it would be naïve to believe that this alone can resolve the concerns of unequal distribution that go far beyond the action (or inaction) of any particular state. For the world's leading economies to play the blame game and do nothing to ameliorate the pressures of global inequality may prove imprudent, if not outright disastrous, in the long run.³⁹ This realization has not escaped several defenders of the resurrect-the-border argument. However, faced with a collective action dilemma, in which the benefits of do-it-alone restrictionism prevail in light of the significant barriers to international cooperation (at least in the short-term), it is not surprising that many countries in the North Atlantic region have become increasingly determined to adopt self-help measures. What is indisputable, however, is that any attempt to keep borders shut forever without addressing the tensions and pressures that encourage global migration patterns is hardly a compelling moral response to acute and persistent disparities of voice and opportunity.

Moving Beyond the Binary Options of Abolishing versus Refortifying Borders

The previous section identified the shortcomings of any simplistic solution that requires either the full-fledged abolition or resurrection of borders. Neither resolves the serious issues of unequal voice and opportunity raised by the current system of citizenship allocation. These extreme options do not, however, exhaust all possible resolutions. The following pages are devoted to exploring alternative models of response, none of which make the assumption that we will see either the abolishment of citizenship or the rise of impenetrable borders in the immediate future.

Although there are many alternatives to consider, I have chosen to elaborate on those that offer important and innovative visions for the future of citizenship in a globalizing world. Each of these proposals takes issue with a different aspect of birthright entitlement: (1) its nontradability and nonalienability (commodification); (2) its connection to territoriality and statehood (unbundling); (3) the lack of robust alternative entry routes (open-admission policies); and (4) the failure to acknowledge the global distributive consequences of ascriptive membership-transfer regimes (curtailing inheritance). Each proposal pulls in turn in a different normative direction: emphasizing market transactions over political ties; loosening the tie between citizenship and protected rights and benefits; cherishing open borders; and tackling head-on the wealth-preserving aspect of birthright

transfers. I evaluate the commodification and unbundling alternatives in the remainder of this chapter. The discussion of open-admission policies and curtailing inheritance is reserved for Chapter 3.

Against Commodifying Citizenship

Unlike more familiar accounts of political membership that treat citizenship as an inalienable legal status, a bundle of rights, or a source of identity and belonging (that is, as capturing core dimensions of our life that deal with our sense of self and place in the world) proponents of the commodifying citizenship approach view citizenship through a very different lens. For them, the market represents a supreme alternative to any limited “range of tired options,” as Julian Simon once put it, which informs any other system for identifying preferences and distributing goods.⁴⁰ As such, the crux of this approach is that instead of relying on government as the purveyor and grantor of citizenship, access to membership in affluent countries should be sold or auctioned to the highest bidder among qualified applicants; in effect, this would turn political membership into a tradable good like any other. This market-based approach, which represents a Hayekian-like variant of the narrow conception of property, fits into the methodological archetype that Margaret Radin calls “universal commodification”—treating everything that is of value to individuals and communities as translatable or commensurable into a single measure or unit of analysis, here defined as commensurable monetary worth.⁴¹ If everything that we value is ultimately judged according to its price tag (or the willingness of individuals to pay for it), then according to the logic of universal commodification, nothing prohibits the application of this rationale to the terrain of citizenship.⁴² This approach thus assumes that nothing is lost when our affiliations and relations with others (here, comembers in self-governance) are stripped down to terms of a sale-and-purchase contract.

Addressing this line of argument, endorsed by leading economists, is important because of its rising popularity in the world around us. It also highlights the dangers of portraying citizenship as a mere tradable good that simply requires sending in a bank wire transfer or delivering a stack of cash in exchange for political membership. But in order to reach this conclusion, we must first examine carefully the positions taken by leading economists who have tried to give flesh to the idea of “commodifying citizenship.” The most immediate fact to notice here is that even among those arguing in favor of commodification, there are meaningful disagreements about how precisely to interpret the imperative of selling access to membership. Barry Chiswick, for example, argues that a country like the United States should

set a *fixed entry price* to be paid by anyone seeking its membership benefits. Gary Becker suggests that entry permits should be *auctioned off* to the highest bidders. Others suggest a *mixed-admission route*, whereby preference is given to those who are most qualified (according to government-set criteria) and willing to pay the highest bid (the market mechanism) for purchasing their way into the desired polity.⁴³ Although these approaches represent variations on a theme, it is clear that those who view citizenship as fungible in this way hold an unflagging faith in the market as a fair distributor: in their words, it allows “*anybody* in any part of the world the *same* opportunity to buy an [admission] visa.”⁴⁴

Alas, is that really the case? To begin with, the argument in favor of commodifying citizenship appears willfully blind to various information and knowledge asymmetries among the expectant global cliental. For instance, how, by whom, and in what vernacular will information be disseminated worldwide so as to ensure that everyone—including the fragile, the illiterate, the penniless, or the person with no access to the mainstream media or Internet outlets—gains a fair shot under this system? Add to this the very real concern that power relations, gendered trajectories, and economic barriers would almost certainly price out the vast majority of the world’s population from the chance of bidding for admission to highly desirable countries. But this line of response, while absolutely valid, already concedes too much; it is confined within the language of economic theory rather than external to it. Within the confines of economic theory, a sophisticated advocate of commodification could respond to criticisms by, for instance, adding third-party private investors or insurers to the picture. On the basis of an individual’s future employment prospects, these third parties could grant loans to those without sufficient cash to buy their way into the polity.⁴⁵ Or they could argue that it is fair to discriminate on the basis of future productivity or income, because this method of admission rewards those who are more resourceful and entrepreneurial, and thus, according to this world vision, more deserving of the various returns that money can buy—including the ability to purchase citizenship itself. In short, access to membership is seen as a reflection of financial might, or a test to the willingness to spend one’s capital on acquiring citizenship titles in the world’s more affluent polities.

Although we have become almost oblivious to the manifold ways in which the language of the market now creeps into every corner of our lives, I believe this tendency must be resisted in the realm of citizenship. Indeed, it is difficult to think of any admission method more in contrast with the goal of reducing global disparities of wealth and power. It also drastically breaks course with the self-proclaimed legacies of immigrant nations that historically allowed

newcomers from very modest beginnings the opportunity to pull themselves up by their bootstraps (rather than demanding a hefty entry fee before giving them a chance to come in). Those in favor of commodification instead demand the cash upfront. This shuts the metaphoric golden door for everyone but the economically self-assured, leaving outside anyone belonging to the huddled masses yearning to breathe free. As a result, it may only further exacerbate present inequalities in life chances rather than ameliorate them.

Citizenship as we know (at least since Aristotle) is constituted of *political* relations; as such, it is expected to both reflect and generate a notion of participation, co-governance, and a degree of solidarity among those included within the body politic. It is difficult to imagine how these values could be preserved under circumstances in which insiders and outsiders are distinguished merely by the ability to pay a certain price. The objection here is to the notion that everything, including political membership, is indeed commensurable and reducible to a dollar value. To trade in citizenship, then, is not only to violate its core features but also to further institutionalize inequality: it is to grant admission to the political community on nothing but financial might. And those who can afford the economic privileges of citizenship under this system of auctioning entry permits are most likely not the ones most in need of its enabling and leveling up capacities. Rather than to reduce global disparities in rights, goods, and opportunities, to commodify citizenship is to aggravate these inequalities.

Staunch defenders of the commodification approach clearly understand that they are facing a hard sell. As Gary Becker admits, “some people object to the sale of [entry] permits because, as they say, ‘citizenship is not to be for sale.’”⁴⁶ This moral intuition runs deep; most people express strong reservations against the notion of attaching a monetary tag to citizenship.⁴⁷ The reasons are plenty. For one, such a move may erode the inalienability of equal entitlement, which in turn may cause irreparable harm to the vision of citizenship as grounded in long-term relations of trust and shared responsibility, thus spelling the ultimate demise of the political into the economic. It may further undermine bonds of co-authorship, cross-subsidization of risk, even sacrifice that might be expected in times of need. Moreover, citizenship currently involves making collective decisions and translating them into binding political commitments that are larger than oneself, extending well beyond the life span of each generation of members. Add to this the concern that turning citizenship into a money-based prize contradicts any Walzerian-like notion of complex equality, which holds that advantage in one sphere (here, wealth) cannot be legitimately transferred to another (in this case, membership).⁴⁸ This makes the idea of selling membership unnerving for anyone who objects to the reduction of the political and the ethical into the bare economic, with the latter’s imperialistic perception of

trades as occupying the full terrain of human value and meaning.⁴⁹ Just as I think we should strongly object to hollow membership in the case of the mere nominal heir (the person who has no real and effective link to the political community but accident of birth, as shall be discussed in Chapter 6), I believe we must resist with at least equal force the notion that money can buy “love of country” or secure membership in it.

It is encouraging to recognize that even property theory itself shares this intuition; indeed, it recognizes that some things are not for sale.⁵⁰ Although the “free alienability of entitlements” (the lawyer’s term for the sellability or tradeability of assets) is a core principle of contemporary property law, there are notable exceptions. In contrast with the commodification logic that calls for “unregulated markets in *everything*,”⁵¹ scholars and jurists have long defined and defended the status of certain kinds of entitlements as “inalienable possessions.”⁵² In its strongest form, *inalienability* means that certain things or relationships are categorically excluded from the market.⁵³ Classic examples of inalienability in other contexts include protected religious or cultural artifacts, national-heritage treasures, social security, welfare benefits, and other government-backed entitlements provided by the regulatory state, voting rights, and so on.⁵⁴

Selling such entitlements would, as one scholar eloquently puts it, “diminish the self and by extension, the [political community] to which the person belongs.”⁵⁵ As a legal matter, these inalienables cannot be sold or traded, in large part because they are perceived as identity-defining for their individual holders or the larger collectivity.⁵⁶ Prohibiting the substitution of membership for money is here seen as validating the expression, symbolic or actual, of a distinctive historical and cultural legacy (the national-heritage category) or significant manifestations of one’s legal standing as an equal member in a given community’s social and political life (voting rights and other government-backed entitlements).

These protections are regarded as priceless: they bear a nonmonetary value that justifies placing them above exchange value and safely outside the realm of the market. As a normative matter, shielding certain goods and relationships from the logic of commodification permits keeping them at bay from what Michael Sandel once dubbed the “degrading effect of market valuation and exchange.” The argument here is that the moral importance of the political and civic goods at stake—the very properties that make citizenship a unique interpersonal relationship among members and between them and a representative government—is such that they can only be said to be “diminished or corrupted if bought or sold for money.”⁵⁷

In rejecting the narrow conception of property that reduces everything to monetary value, we can begin to see more clearly the implications of the broad conception of membership: citizenship both recognizes and preserves

for each member something that goes beyond a mere financial worth; allowing each to bolster certain irrevocable protections and the equality of sharing in the membership and governance of the commonwealth.⁵⁸ This relationship not only expresses a particular political affiliation, but also stands for enabling qualities that are nonfungible precisely because they are recognized as bound up with defining the self and facilitating well-being.⁵⁹ These include: a sense of belonging; freedom from want; inclusion in the franchise; access to whatever public goods, privileges, and benefits attach to the status of membership—to mention but a few core instantiations. Together, these protections are seen as contributing to one's freedom, security, and well-being. When taken in this larger context, the case against selling citizenship becomes crystal clear: the distinct political and civic qualities of citizenship cannot be reduced to a market price without substantially altering, if not outright dissolving, the bonds of membership itself. The legal fact that citizenship is formally excluded from market exchange or trade (a point to which I return later) can thus be understood not as an oversight, but as a key feature that protects its distinct character and the values it seeks to uphold. The setting aside of citizenship from the market prevents a substantive loss from occurring. To oppose commodification, then, is to guard against devaluing and diminishing the broad conception of citizenship and restricting the rise of its nemesis, the narrow vision of trades.

In the real world, however, the commitment to maintaining citizenship as a noncommodified entitlement is facing mounting pressure. In the world's most desired immigrant-destination countries, including the United States and Canada, and more recently, Germany and the United Kingdom, governments themselves, the public trustees of citizenship, are now offering membership titles "for sale" to those willing to bring significant amounts of cash and investment into the receiving polity. The United States, for instance, has set the bar at US\$1 million for a green card under the EB-5 (the relevant visa category), whereas Canada offers a bargain for investors who wish to settle in North America: once they have a business plan that is approved by the government, those with a minimum net worth of CDN \$800,000 merely need to invest CDN \$400,000 to gain admission. The United Kingdom similarly offers residence permits in exchange for investment of GBP 750,000 in British stocks and the holding of additional funds of at least GBP 250,000, while Germany (until recently a declared nonimmigration country) now charges one million Euros for the privilege of establishing permanent residence within its territory.⁶⁰

These commodified-admission routes, known as the investor categories, currently account for a limited stream or quota of entrants per year. But they are alarming because of the implicit normative message they send: that

people should be able to buy their way into the body politic. Given the pressures of globalization and privatization, we may witness greater emphasis on these emerging cash-for-passport admission routes. Although some economists will be quick to note that such programs can create a hefty stream of revenue for governments, this is hardly a strong enough justification to endorse them. The desire to enlarge their coffers may, as a matter of real-life experience, explain why some off-shore economies periodically offer cash-for-passports programs (typically until the moment when these passports become devalued in the international mobility market because border control agents in desired countries begin to notice their inflation). However, it threatens to corrupt the very “asset” that is put on sale. The concern is this: what changes when we sell citizenship is not just the *price tag of membership*, but its substantive content as well. In addition, it will likely reshape the *class of beneficiaries* that are likely to enjoy it; reliance upon market mechanism will not only deprive the vast majority of the world’s population from even gaining a chance of access to citizenship in well-off polities, but it may also deprive present members (those without sufficient funds to eventually purchase such titles) of their presently inalienable possession and ownership of their secure membership titles.

This is a very drastic, and, as I have suggested, misguided turn. Still, several scholars have taken up the task of imagining how our world might look were the market, in lieu of the state, to govern access to, and the transfer of, political membership. “If we take the basic incidents of citizenship to be protection of members and participation in modes of governance,” explains a recent study, “the market for citizenship could form around offer of and demand for these services. Indeed, the offer of broader packages of citizenship services would be the basis for product differentiation.”⁶¹ The latter is a euphemism for providing lesser rights and services in exchange for lower fees.⁶²

In this commercialized citizenship universe, professional advisors may well be regarded as more suitable for the task of managing membership portfolios than elected representatives. Thus, democratic participation may become the exception rather than the rule in this alternative, for-profit citizenship universe. Instead, we may witness the rapid takeover by technocratic, financial advisors who may recommend rationing access to membership and its accompanying benefits, or more strictly tailoring the provisions for admission in order to reduce the risk of including unproductive members or those who are likely to become a net-drain on the respective citizenship portfolio. With this logic in play, we may eventually see the rise of a stock exchange for trading membership corporations or some futuristic international center for registering such citizenship sales and purchases, perhaps

even the creation of a transnational regulatory authority that would provide the required oversight for this new and lucrative market.

Under a pure market system, those with less disposable cash may not even be able to afford purchasing any membership titles. In this scenario, they would lose the ability to make claims for equal voice and participation as well as the safety net provisions that are currently granted to them as part of the state-backed protections that attach to the right not to be excluded. Unlike the optimistic vision of a deterritorialized conception of membership (which I discuss below), in this alternative narrative, where access to citizenship depends on one's wallet size, little will remain of our current understanding of bounded communities. Instead, we will likely see the rise of gated, private-club-like citizenship communities offering competing bundles of purchased services and protections. This is not a utopian vision of greater equality or free movement for all, but rather a darker and more stratified—let alone tightly controlled—world of privatized access to citizenship's goods, reduced into purchasable commodities with differentiation in price and product quality.

This is a frightening future, representing the triumph of economics over politics, changing membership into a marketable commodity with the risk of losing everything that makes citizenship meaningful and worth preserving today: security; identity; belonging; an equal voice in governance; a safety net; a basic public-minded commitment to a long-term time horizon of intergenerational responsibility and continuity, to name but a few. Add to this the very real concerns I have already alluded to about the uncertain, limbo situation of those who fall short of the means to pay the membership mortgage. Once admission to citizenship becomes reliant on an auction or a hefty fixed-entry price, many people may find themselves unable to afford membership rights and services of any kind. Given the long-standing concern of international law and political philosophy with statelessness, it is unclear which institution would bear the responsibility of taking care of the needs and interests of nonmember populations in this brave new world of commodified citizenship. The specter here, as one commenter powerfully asserts, is that of "unconstrained survival-of-the-fittest market relations, with the dispossessed falling helplessly to the wayside."⁶³ This is a desperately cold and dangerous place to be, as Hannah Arendt and Giorgio Agamben remind us, analyzing, in a different context, the bare and naked life of the state-less, protection-less person.⁶⁴

Commodified citizenship thus offers a radical rewriting (if not erasure) of the logic of *inalienable* membership. In fact, it turns this logic on its head. "Wealth buys membership": the market here becomes the sole and omnipresent purveyor of access to citizenship and its accompanying benefits, ul-

timately replacing democratic governance and the ability of the affected population to act in concert as lawmakers and guardians for advancing their political communities at large. This is a dystopia, a dangerous development that must be curtailed on pain of dissolving most of the major achievements of the modern history of citizenship.⁶⁵ Within the intellectual context of developing the analogy to inherited property, identifying and defending the inalienability of political membership therefore becomes crucially important for three main reasons.

First, it permits us to resist the imperialist logic of universal commodification (or what Joseph Stiglitz calls the zeal of “market fundamentalism”), which is found in many stripes of the narrow conception. Second, it helps sharpen the distinction between treating citizenship as if it were a complex form of inherited property (the conceptual analogy that I develop throughout this book), and the endorsement of the actual treatment of citizenship as an alienable commodity. The latter position represents the ultimate application of the trades logic of the narrow conception of property to the domain of political citizenship. The former holds that any meaningful expression of political membership cannot be reduced to a pure commodity; the web of social ties and responsibilities that make citizenship meaningful simply cannot survive (without a significant loss and deep mutilation) as a mere tradable good. Third, it allows us, in the spirit of the broad conception, to acknowledge that citizenship inevitably has both a nonpecuniary value (such as its identity-generating and security-enhancing qualities) as well as more quantifiable aspects (such as its significant wealth-preserving properties). This multifaceted feature is familiar from property law and theory’s conceptualization of the inalienable; the fact that there are some quantifiable aspects to otherwise nonpecuniary goods should not lead us to erroneously conclude that “behind every property-like categorization, stands alienation.”⁶⁶ When applied in the context of citizenship, it is imperative to account for these multidimensional and noncommensurable aspects of political membership if we are to find more equitable and justifiable responses to the global distributive inequalities currently sustained through birthright citizenship regimes.

The Unbundling of Citizenship

Is there a brighter alternative to the dystopian future of commodified citizenship? Some believe that the unbundling of citizenship in the new era of de-territorialized politics provides the answer. On this view, familiar notions of political membership will eventually dissolve and lose their significance in our increasingly globalized lives. Instead of endorsing a top-down

model that requires the formal abolition of borders or birthright entitlements (as advocated by those who envisage the rise of a central world citizenship model), proponents of post-, de-, and transnational alternatives rely on softer legal changes, emerging from the ground upward.⁶⁷

The specifics of the unbundling metaphor may take one of many different forms. Some commentators emphasize the decoupling of political authority from territory.⁶⁸ Others point to the disaggregation of citizenship as a secure bundle of rights and privileges that attaches to membership in a bounded community, highlighting instead the growing prominence of regional and international human rights regimes. Still others suggest that the concept of sovereignty itself is being partly decentered, pointing to the emergence of multiple actors, groups, and institutions that are operating both above and below the state level.⁶⁹ The ultimate conclusion of this unbundling theory, as David Jacobson aptly puts it, is that “the ‘pact’ between state and citizen is *broken*.”⁷⁰

The thrust of the argument is that we are already witnessing the disassembling of the holy trinity of modern statehood: the knot that binds together territory, authority, and rights (to borrow from Saskia Sassen’s terminology).⁷¹ This is typically accompanied by the claim that, as an alternative to citizenship-based protections, emerging transnational and international human rights discourses are gaining sway as a world-level organizing principle.⁷² These emerging instruments are seen as capable of granting protection to a person’s basic rights, wherever that person may be, irrespective of his or her formal membership status (or lack thereof) in a given polity. Yasemin Soysal eloquently summarizes the argument: “national citizenship is losing ground to a more universal model of membership, anchored in deterritorialized notions of persons’ rights.”⁷³

Although the unbundling thesis (in its various manifestations) enjoyed a heyday in the closing decades of the twentieth century, it has received some scathing critiques at the dawn of the twenty-first. For one, several scholars have noted that it draws too sharp a contrast between the local and transnational, losing sight of how the latter is often dependent upon, or a product of, the former.⁷⁴ Similarly, the notion of a zero-sum game between the national and the international tends to ignore the manifold ways in which one transforms the other (and vice versa), and the reality of more flexible, embedded or overlapping membership affiliations to more than one locus of citizenship.⁷⁵

Furthermore, despite predictions about the demise of old demarcating lines that are based on territory and identity, and the rise of a new postnational model in which “universal personhood replaces nationhood; and universal human rights replace national rights,” the protection of individuals,

especially nonmembers, still relies heavily on domestic (and increasingly regional) regimes, which have not abolished the distinction between the citizen and the alien.⁷⁶ As Linda Bosniak's work meticulously establishes, this distinction often hits hardest when the topic of analysis is the definition of membership boundaries themselves, the regulation of cross-border mobility, and the right to enter and remain.⁷⁷ The vision of universal personhood replacing nationhood may become a reality some day, but that day has clearly not yet arrived.

If anything, we are witnessing an unmistakable surge toward an ever tighter and harsher regulation of borders throughout the world.⁷⁸ This trend began prior to the events of September 11, and has accelerated dramatically in its aftermath. Add to this the fact that when the unbundling of territory from authority occurs, nothing stops governmental or regional border-enforcement agencies assigned with the task of stopping the admission of "unwanted intruders" from expanding their enforcement mandate beyond territorial borders. In this way, de-territorialization can be used as a license to pursue more aggressively their access-restricting mandate, often far away from the actual, territorial border itself.⁷⁹ This new extension of authority permits the detachment of border controls from their traditional location at a country's edges, and further limits the rights of nonmembers trying to get in: the latter are often interdicted en route, long before they reach the promised land of immigration or prosperity.⁸⁰ Witness the increase in national border officials stationed overseas at key departure points and this extraterritorial reach of national immigration policies comes starkly into focus (think, for example, of U.S. officials at Caribbean airports or British officials at the Eurostar/Eurotunnel terminals in France). Even the otherwise optimistic story of European citizenship has a less sanguine dimension, which often gets lost in the discussion; the landmark opening of the internal borders in Europe has been consistent with a closing of the external borders to non-EU nationals. This has led to the construction of a massive union-wide visa and biometric-regulatory virtual-walls system to protect those at the inner core from those who are pounding on Europe's (mostly) closed doors. The external-oriented European Union border-regulation agency known as Frontex, based in Warsaw, is there to assist in this.

In short, the de-territorialization of political authority, which has been hailed in the literature as a sign of the coming of age of human rights instruments and the growing importance of personhood over membership status, has perhaps materialized for those already within a fortress Europe, but has also bred a new form of exclusion around the walls of the fortress. As just mentioned, national and regional regulators have become increasingly bent on adopting policies of interdiction, which permit immigration

officials to conduct their gate-keeping mission on foreign soil with the same binding legal effects as if their actions were taken within the jurisdiction.⁸¹ In Europe and beyond, the de-territorialization of political authority is captured by regulatory and enforcement agencies, which have turned it into a hyperrestrictive tool of cross-border regulation and restriction, rather than an inclusive, all-welcoming instrument of human rights.⁸²

Governments around the world are further using the concept of de-territorialization to devolve enforcement powers to a host of local and supranational authorities as well as nonstate actors (for example, airline companies that are fined for carrying passengers lacking proper documentation, thus shifting the onus of border control onto private, commercial, and most importantly, nonaccountable agents).⁸³ Finally, instead of losing control, immigration and enforcement agencies have creatively regained or even expanded their reach. This is evident, for example, in the concentrated effort to reformulate entry and immigration-admission categories, giving preference to highly skilled migration streams over and above family reunification or humanitarian categories in the global race for talent; or the rise of social contract obligations in most European countries, making admission more difficult for those with lesser resources or nonmainstream cultural or religious affiliations. It is also reflected in the trend toward restricting the rights and protections granted to lawful permanent residents (green card holders) in the United States, the deepening of regional and international cooperation among police and immigration enforcement agencies in the efforts to prevent unwanted admission, the use of biometric information, fingerprinting, shared look-out lists and databases, as well as the increased use of smart or virtual borders—all big-brother-like tools designed to more effectively regulate cross-border mobility in the age of conflated national security and global migration pressures.⁸⁴

Finally, with the war on terrorism giving birth to Guantanamo, extraordinary rendition, water-boarding, Abu Ghurayb, undisclosed black-site investigation centers, to mention but a few familiar examples, we are witnessing today the sheer vulnerability that attaches to the deprivation of the property-like bundle of protections traditionally offered by citizenship. International human rights instruments, although promising in principle, have to date provided mostly cold comfort to those detained under the current political atmosphere of heightened national-security alerts.⁸⁵ Clearly, the situation may change for the better in the future, but we still need some evidence to support the view that this is merely a temporary drawback in the otherwise onward march toward a new, postnational era.⁸⁶

Some of the early declarations of the ultimate demise of citizenship and regulated borders thus appear to have been premature and overly sanguine;

they systemically ignore the potential for national or transnational regulatory agencies to recover their authority to control membership boundaries and to adjust their reach to new patterns of global mobility. But we are now seeing a readjustment of sorts. This is taking place both in the academic literature, which seeks to relocate citizenship as one among many meaningful sources of identity and affiliation, and in the advocacy world as well, where regional, international, local, and national tools are used interchangeably and often simultaneously to advance the rights and protections of those with less than full membership.⁸⁷ Although I fully share these commitments, I believe that the unbundling theme is most productive when treated as a basis for respecting transnational ties and identities as coexisting with (rather than replacing) our belonging to one or more political communities. What I reject is the notion that we must debunk citizenship (rather than attempt to preserve and strengthen its best characteristics) as a precondition for making our world a more just and fair place for its inhabitants. There is, however, no need to be constrained by this artificial zero-sum matrix, as I will attempt to demonstrate in subsequent chapters.

Where “unbundling” of territory, authority and rights proves particularly fruitful, however, is in the realm of political participation. We are witnessing here the generation of creative openings and institutional architectures outside and beyond the traditional framework. This creates a larger space for cross-border and cross-cultural democratic discourse, in which participants can express their interests and needs, regardless of whether or not they have formal citizenship status.⁸⁸ This does not require creating a superstate or alter-*demos*; it permits instead multiple levels of governance to flourish. No less significant, this grassroots development aims to push the boundaries of conventional wisdom: instead of focusing on existing structures of membership, it offers an aspirational call to adopt a new ethics that extends the reach of our solidarities and responsibilities beyond the immediate circle of members to which we happen to belong.⁸⁹ This transnational variant of the unbundling narrative also encourages fresh responses to the various problems of unaccountability and externalities that require political organization and legal action beyond that taken at the purely national or formal international level. Consider here examples such as the disciplining effect of transnational civil litigation, undertaken by private actors and nongovernmental organizations seeking to hold multinational corporations to account in cases of severe human rights violations, wherever they happen to have occurred, even if that was half the world away from the well-tended headquarters of these multinational corporations.⁹⁰ Another promising development is the growing emphasis placed on human security (not just national security) and the creation of new complaint mechanisms

that permit individuals to hold their states to account under regional and international law standards. Or consider the establishment of new venues of notification for citizens' intervention in environmental legislation proposed in countries other than their own, such as NAFTA's green protocol, or the emerging significance of direct input from the local level into European Union-wide legislation, both of which provide noteworthy illustrations.⁹¹

Add to this institutional creativity the burgeoning economic impact of remittances sent by international migrants, expanding patterns of circular migration, and growing knowledge and infrastructure transfers by diaspora communities directed to the betterment of the home country that they left behind, and these transnational patterns begin to mark a set of promising changes in the way in which individuals and communities redirect political participation and economic opportunity in a more globally redistributive fashion. Although these patterns are encouraging, there is still plenty of room for receiving and sending countries, as well as intergovernmental and issue-specific institutions, to improve matters through coordinated actions to allow those affected by policies made outside their territorial jurisdiction to gain meaningful venues of participation alongside more established institutions of citizenship and democratic participation.

Another development to watch for is the mushrooming recognition of dual nationality, which by last count is now accepted in one form or another by more than half of the world's countries. This development roughly coincides with the current wave of economic globalization. Such acceptance represents a drastic break away from the early twentieth-century hostility against multiple national affiliations, as crystallized in the 1930 Hague Convention, whose preamble declares that "it is in the general interest of the international community to secure that all its members should recognise that every person should have a nationality and should have *one* nationality only." In this respect, the relaxing of the territory-authority-rights knot has allowed a greater multiplicity of political-membership affiliations to coexist and flourish, far exceeding what was imagined as possible under the far stricter (one person, one nationality) rule that exemplified the logic of the classic Westphalian model.

The Humpty Dumpty Effect

Without discounting the value of these developments, a final observation about the unbundling narrative remains in order: it has the potential to dangerously interact with the commodified citizenship logic. The major concern here is that by encouraging the dissolution of the bundle of benefits and protections that currently attach to citizenship, proponents of the unbundling

vision will also begin to fuel an alternative discourse as well—one that urges the privatization and fragmentation of citizenship, and that implies less collective responsibility for the well-being of members.⁹² Once broken up, the collective achievements of citizenship, just like Humpty Dumpty, may never be put together again.

By emphasizing the broken pact between the state and the individual, the unbundling discourse may inadvertently provide ammunition for those supporting the withdrawal of the encroaching state and the rise of an all-encompassing self-regulating market instead. Although issuing from very different ideological premises, this dual-track attack may end up drastically eroding the right-not-to-be-excluded and at the same time shift the right-to-exclude from the political to the economic sphere. If followed, such a trajectory would amount to the further hollowing out of the enabling side of citizenship, whose commitment to a range of public goods, from access to clean water and safe streets to education and health care, as well as cross-subsidization of risk and collective action in the citizenship zone has already sustained serious attack. In this scenario, the devaluation of bounded membership (a cause célèbre by postnationalists) may go hand-in-hand with the thinning out of the content and scope of the right-not-to-be-excluded. It may instead endorse a more laissez-faire, fend-for-yourself conception of membership.⁹³

In sum, there is much to be celebrated about the expansion of transnational affiliations and the opening of new, often overlapping venues for expression of political voice and democratic iterations. But nothing in this narrative of a more multifaceted world of cross-border participation (with its emphasis on strengthening and multiplying local, regional, national, or international entry points) justifies the conclusion that we must celebrate the demise of protected membership in a collective political enterprise. Unlike those who celebrate the “broken pact” between the individual and the state, I strongly believe that the invaluable properties of citizenship should not become the price paid for a more flexible regime of international voice and opportunity.

THIS CHAPTER HAS OUTLINED and assessed the competing visions of world citizenship, resurrected borders, commodified membership and unbundled citizenship. It has highlighted the respective merits and shortcomings of each approach. Of the options discussed thus far, the transnational variant of the unbundling narrative is the most attractive because it holds the promise of ameliorating problems of unequal voice across national and regional borderlines through direct and indirect forms of politics and governance that operate both above and below the state level.

A more profound message, however, lies beyond these concrete observations. Instead of treating robust citizenship and global redistribution as having inherent tension with one another, the central message that I take from these recent transformations on the ground is that the national and international can, and must, coexist and may constantly help to reshape and refocus each other.⁹⁴ One emergent possibility of such interaction is that of enlarging the moral and legal boundaries of our communities of care and responsibility beyond those of established citizenship. Although some see the solution in emphasizing the importance of voluntary nonterritorial identity affiliations (such as religion, gender, and so forth), there is no reason for us to assume that such overlapping affiliations will offer a panacea to address the deep inequities in life prospects that now attach to bounded membership. To squarely address this concern, and without resorting to the options of either erasing borders altogether or ballooning membership to encompass the world *simpliciter*, it might be better to acknowledge (for some, concede) the enormous social advantages of having stable citizenship regimes. This still doesn't address the problem of unburdened intergenerational transmissions of membership, which grant a world of opportunity to some but denies it to others. What is missing, therefore, is an argument that maintains the best of bounded membership—with its ability to promote internal redistribution and support co-governance—while at the same time confronting the dire global inequalities in life prospects that take cover behind the naturalness of the current birthright citizenship/property transfer regime.

What is hanging in the balance is an attempt to respect certain special relations while also expanding the provision of fair access to voice, wealth, and power globally. The classic analogy to consider here is that of *inherited* property: while permitting the intergenerational transfer to occur, it is not without responsibility or liability toward those who do not share similar bounty. This has potentially far-reaching implication, especially for the development of new remedies to overcome some of the shortcomings of the options currently on offer. Consider the fact that it was none other than the forefather of modern economic theory, Adam Smith, who famously argued that once the recipients of bequests, to use the language of the Roman law, “are said to be emancipated” (by having received their portion from the estate), inheritance tax duties can be imposed. Across the Atlantic, in America, some of that country's most famous millionaires became the most vocal advocates in favor of curtailing the intergenerational transfer of large fortunes. Andrew Carnegie, for example, declared himself in favor of an inheritance tax based explicitly on a diffusion of wealth argument. The core rationale that I wish to export from the province of inheritance debates

to the citizenship realm is that instead of altogether cutting the intergenerational transfer, taking action (here, through inheritance levies and related measures) geared toward the ends of achieving greater social equality is legitimate, indeed required, in order to justify the transfer itself.

By extension, in a world of deep inequality like our own, hereditary membership in well-off polities may continue to exist, but if and only if state (or transnational) action is introduced for the benefit of the larger community of those left outside the membership; for instance, by placing what in the next chapter I call the “birthright privilege levy” on automatic recipients of title so as to ensure that everyone, regardless of where or to whom they were born, must receive basic protections to permit them to live above a threshold, ensuring (at minimum) an acceptable level of subsistence and basic goods. This is compatible with a vision that holds that more robust obligations, or enabling commitments, are reserved for co-members of a shared political unit. This position can be coherently defended from different starting points, including need-based, rights-focused, or outcome-centered approaches. The citizenship-as-inherited property perspective creates an additional basis for defending and discharging the transnational distributive transfers that are likely to be required in order to fulfill the threshold obligation, and thus begin to dismantle the disparities that currently attach to birthright citizenship without demanding the abolishment of bounded membership *per se*.

Nothing in this vision of a more just world order requires that we give up the commitment to a robust conception of enabling citizenship, which, as we have already seen, invokes significant co-obligations among members. Equally, it does not imply that we owe nothing to those who remain outside our circle of members due to birth-based circumstances beyond their control. It is the entail-like inheritance of membership through strict intergenerational transfer, as codified in our current citizenship laws, that places a burden on the beneficiaries of birthright to share in their windfall political estates. This can be done either through the redistribution of membership titles (open-admission policies) or by finding alternative remedial mechanisms to help diffuse wealth and power concentrations (curtailing inheritance). Fleshing out the institutional implications of these ideas is the task to which I now turn.